IN THE NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH
COURT NO. 1

ITEM No.301

(MP) CP(CAA) 11 of 2020 in CA(CAA) 93 of 2019

Proceedings under Section 230-232

IN THE MATTER OF:

Manak Utensils Pvt Ltd
PJ Beverage Pvt Ltd
Babsons Alloys Pvt Ltd
Amrit Dall Mill Pvt Ltd
Flame Real Estate Pvt Ltd
Antardhara Estate & Finvest Pvt Ltd
Nirmulya Estate & Finvest Pvt Ltd
Stud Estate & Finvest Pvt Ltd
Manavhit Finvest & Builders Pvt Ltd
Pushpraj Estate & Finvest Pvt Ltd
Manoneet Estate & Construction Pvt Ltd
Mangalmaya Estate & Finvest Pvt Ltd
Ekroopta Estate & Finvest Pvt Ltd
Jyotipriya Plantation & Orchads Pvt Ltd
A M Buildcon Pvt Ltd
Kamali Finstock Ltd
Ma-Anandia Leasing & Finance Ltd
Surendra Petrochem Pvt Ltd
Ankit Steels Pvt Ltd **.....Applicants**

Order delivered on 08/09/2022

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Kaushalendra Kumar Singh Hon'ble Member(T)

PRESENT:

For the Applicants :
For the Respondent :

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-Sd-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-Sd-
DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

Braj Mohan

NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH

CP (CAA) 11/230-232/MP/2020 in
CA (CAA) 93/230-232/MP/2019

[An Application filed under section 230-232 of the Companies Act, 2013 for (compromise, arrangements, and amalgamations)]

In the matter of

Manak Utensils Pvt. Ltd.
CIN: U28996MP1990PTC005782
A company incorporated under the
provisions of the Companies Act, 1956
and having its registered office at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 1 /Transferor Company

P.J. Beverage Pvt. Ltd.
CIN: U15541MP1981PTC001846
A company incorporated under the
provisions of the Companies Act, 1956
and having its registered office at:
Unit No. 88, Kasera Bazar,
Indore, Madhya Pradesh- 452002

.....Petitioner No. 2/Transferor Company

Babson Alloys Pvt. Ltd.
CIN: U27320MP1986PTC003524
A company incorporated under the
Provisions of Companies Act, 1956
and having its registered address at:
88, Kasera Bazar,
Indore, Madhya Pradesh- 452002

.....Petitioner No. 3/Transferor Company

Amrit Dall Mill Pvt. Ltd.
CIN: U01531MP1995PTC010007
A company incorporated under the
Provisions of Companies Act, 1956
and having its registered address at:
20, Kibe Compound,
Opposite Dawa Bazar,
Indore, Madhya Pradesh- 452001

.....Petitioner No. 4/Transferor Company

Flame Real Estate Pvt. Ltd.
CIN: U70101MP1995PTC009794
A company incorporated under the
Provisions of Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

……Petitioner No. 5/Demerged Company

Antardhara Estate and Finvest Pvt. Ltd.
CIN: U45201MP1996PTC011306
A company Incorporated under the
Provisions of Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

……Petitioner No. 6/Demerged Company

Nirmulya Estate and Finvest Pvt. Ltd.
CIN: U45201MP1996PTC011303
A company incorporated under the
provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

……Petitioner No. 7/Demerged Company

Stud Estate and Finvest Pvt. Ltd.
CIN: U45201MP1996PTC011308
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

……Petitioner No. 8/Demerged Company

Manavhit Finvest and Builders Pvt. Ltd.
CIN: U01211MP1996PTC011378
A company incorporated under the
provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,

Indore, Madhya Pradesh- 452003

.....Petitioner No. 9/Demerged Company

Pushpraj Estate and Finvest Pvt. Ltd.
CIN: U45201MP1996PTC011304
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 10/Demerged Company

Manoneet Estate and Construction Pvt. Ltd.
CIN: U45201MP1996PTC011366
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 11/Demerged Company

Mangalmaya Estate and Finvest Pvt. Ltd.
CIN: U45201MP1996PTC011305
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 12/Demerged Company

Ekroopta Estate and Finvest Pvt. Ltd.
CIN: U45201MP1996PTC011301
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 13/Demerged Company

Jyotipriya Plantation and Orchads Pvt. Ltd.
CIN: U01409MP1994PTC008344
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:

405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 14/Demerged Company

A M Buildcon Pvt. Ltd.
CIN: U45200MP2008PTC020782
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 15/Demerged Company

Kamali Finstock Limited
CIN: U67120GJ1996PLC029205
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
B-22, 512 Tirth Bhoomi Ternament
Opp. Shakti Estate, Ahmedabad,
Gujarat- 382443

..... Petitioner No. 16/Demerged Company

Ma-Anandia Leasing and Finance Ltd.
CIN: U65910GJ1997PLC031573
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
5-Shree Vallabh Industrial Estate,
Rakhial, Ahmedabad,
Gujarat – 380023

.....Petitioner No. 17/Demerged Company

Surendra Petrochem Pvt. Ltd.
CIN: U23209MP2003PTC015910
A company incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
405, Panchwati Apartment,
9/2/1, Yeshwant Niwas Road,
Indore, Madhya Pradesh- 452003

.....Petitioner No. 18/Demerged Company

Ankit Steels Pvt. Ltd.
CIN: U27108MP1981PTC001742

incorporated under the
Provisions of the Companies Act, 1956
and having its registered address at:
88, Kasera Bazar,
Indore, Madhya Pradesh- 452002

……Petitioner No. 19/Transferee/Resulting Company

Order Reserved on: 12.08.2022
Order Pronounced on: 08.09.2022

Coram: Dr. Madan Bhalchandra Gosavi, Member (Judicial)
Kaushalendra Kumar Singh, Member (Technical)

Appearance:
Ld. Advocate Mr. Rohit Dubey, for the Petitioner Companies.

ORDER

1. This joint petition has been filed under sections 230-232 of the Companies Act, 2013 (the Act) by the petitioner companies seeking sanction of this Tribunal to a scheme of amalgamation and demerger of M/s Manak Utensils Private Limitedd (Petitioner No. 1), M/s P J Beverage Private Limited (Petitioner No. 2), M/s Babsons Alloys Private Limited (Petitioner No. 3), M/s Amrit Dal Mill Private Limited (Petitioner No. 4), M/s Flame Real Estate Private Limited (Petitioner No. 5), M/s Antardhara Estete and Finvest Private Limited (Petitioner No. 6), M/s Nirmulya Estate and Finvest Private Limited (Petitioner No. 7), M/s Stud Estate and Finvest Private Limited (Petitioner No. 8), M/s Manavhit Finvest and Builders Private Limited (Petitioner No. 9), M/s Pushpraj Estate and Finvest Private Limited (Petitioner No. 10), M/s Manoneet Estate and Construction Private Limited (Petitioner No. 11), M/s Mangalmaya Estate and Finvest Private Limited (Petitioner No. 12), M/s Ekroopta Estate and Finvest Private Limited (Petitioner No. 13), M/s Jyotipriya Plantation and Orchads Private Limited (Petitioner No. 14), M/s A M Buildcon Private

Limited (Petitioner No. 15), M/s Kamali Finstock Limited (Petitioner No. 16), M/s Ma-Anandia Leasing and Finance Limited (Petitioner No. 17), M/s Surendra Petrochem Private Limited (Petitioner No. 18) with M/s Ankit Steels Private Limited (Petitioner No. 19) and their respective Shareholders and Creditors (hereinafter referred to as the "Scheme").

2. It is stated that petitioner companies No. 1 to 15 and 18, 19 are situated in the State of Madhya Pradesh, hence, all these companies are under the jurisdiction of the National Company Law Tribunal Bench at Indore. Other two petitioner companies No. 16 and 17 are situated in the State of Gujarat. Hon'ble Principal Bench by order dated 09.11.2021 in TP (Co. Act)- 28PB/2021 allowed this Bench to proceed with the hearing of all the petitioner companies. Hence, all the petitioner companies are under the jurisdiction of the NCLT, Indore Bench.

3. The petitioner companies had filed a joint Company Application CA (CAA) No. 93 of 2019 before this Tribunal seeking directions for convening meetings of Shareholders and Unsecured Creditors of all the petitioner companies. This Tribunal vide order dated 23.01.2020 directed to convene the meetings of the Shareholders and Unsecured Creditors of all the petitioner companies on 14.03.2020 and 15.03.2020. Since there were no Secured Creditors in any of the petitioner companies, it was held that no meetings of the secured creditors of the petitioner companies were necessary. Advocate Mr. Vijyesh Atre and Ms. Soumya Sharma were appointed as the Chairman and Alternate Chairman for the meetings of the petitioner companies No. 1 to 15, 18, and 19. Advocate Ms. Noopur K Dalal and Advocate Ms. Kristy Bapist was appointed as the Chairman and Alternate Chairman for the meetings of the petitioner companies No. 16 and 17.

4. By the order dated 23.01.2020, passed in CA (CAA) No.93 of 2019, this Tribunal had directed the petitioner companies to serve Notice of the Scheme in compliance with section 230(5) of the Companies Act, 2013 to (i) the Central Government through the Regional Director, North Western

Region, (ii) the Registrar of Companies, Gwalior, Madhya Pradesh, (iii) the Income Tax Authorities; and (iv) the Official Liquidator (in respect of the transferor companies) stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by this Tribunal within the stipulated period of 30 days, it should be presumed that the authorities have no representation to make. In compliance with the order dated 23.01.2020, the petitioner companies have served notices to the Central Government through the Regional Director, North-Western Region, the Registrar of Companies, Gwalior, Madhya Pradesh, the concerned Income Tax Authorities, and the Official Liquidator (in respect of the transferor companies).

This Tribunal further vide order dated 23.01.2020 had directed the petitioner companies to publish proper/common advertisement public notice at least one month before the date of the meeting about convening and holding the said meetings of shareholders and unsecured creditors indicating the day, date, time and place in "**Free Press"** English daily Indore Edition and **"Choutha Sansar"** Hindi Daily Indore Edition for the petitioner companies No. 1 to 15, 18 & 19 and "**Indian Express"** English Daily, Ahmedabad Edition and **"Sandesh"** Gujrati Daily, Ahmedabad Edition for the petitioner companies No. 16 & 17. In compliance with the above, petitioner companies published the said public notice dated 21.02.2020 in "**Free Press"** English daily Indore Edition and **"Choutha Sansar"** Hindi Daily Indore Edition for the petitioner companies No. 1 to 15, 18 & 19 and also published the said public notice dated 28.02.2020 in "**Indian Express"** English Daily, Ahmedabad Edition and **"Sandesh"** Gujrati Daily, Ahmedabad Edition for the Applicant Companies No. 16 & 17.

5. The Petitioner Companies approached this Tribunal for the extension of date for holding the meeting as the meetings that were to be held earlier could not be held due to the pandemic. This Tribunal allowed

the extension vide order dated 11.06.2020 and directed to hold the meeting through video conferencing within a month from the date of order i.e., 11.06.2020.

6. Chairman report dated 18.07.2020 for the petitioner companies 1 to 15, 18, and 19 for the meetings of the Shareholders and Unsecured Creditors is placed on record. The meetings were held on 10.07.2020 and 11.07.2020, in which a Special Resolution for approval of the Scheme was unanimously passed.

7. Chairman report dated 16.07.2020 for the petitioner company 16 and 17 for the meetings of the shareholders and unsecured creditors is placed on record. The following are the outcomes of the meetings:

i. The meeting of shareholders of petitioner company No. 16 was held on 12.07.2020, in which a Special Resolution for approval of the Scheme was unanimously passed. The meeting of unsecured creditors was not held as there are no creditors in the petitioner company No. 16. CA certificate verifying the same is placed on record.

ii. The meeting of shareholders and unsecured creditors of the petitioner company No. 17 was held on 12.07.2020, in which a Special Resolution for approval of the Scheme was unanimously passed.

8. The petitioner companies have jointly filed the present Company Petition being CP (CAA) No. 11 of 2020 before this Tribunal seeking sanction of the Scheme. This Tribunal by order dated 13.08.2020, admitted the petition and directed for publication of notice of hearing in English daily, **"Free Press General"**, Indore edition, and Hindi translation thereof in **"Choutha Sansar"** Indore edition not less than ten days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing. This Tribunal also directed to issue a notice of hearing of the petition to (i) Central Government through Regional

Director, North-Western Region, (ii) Registrar of Companies, (iii) concerned Income Tax Authorities; and (iv) the Official Liquidator.

9. Pursuant to the order dated 13.08.2020 passed by this Tribunal, the petitioner companies have published the notice of hearing of the company petition in English daily, **"Free Press General"**, Indore edition, and Hindi translation thereof in **"Choutha Sansar"**, Indore edition for the petitioner companies No. 1 to 15, 18 & 19 and **"Indian Express"** English daily, Ahmedabad edition and **"Sandesh"** Gujarati daily, Ahmedabad edition for the petitioner companies No. 16 & 17. The affidavit of service, on behalf of the petitioner companies, has been filed confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petition being served upon the concerned statutory authorities.

10. In response to the notice to the Official Liquidator (OL), the OL has submitted his separate report dated 06.11.2020 with respect to the petitioner companies wherein the OL has made the following observations:

i. Directions to be issued to the petitioner companies to clarify whether the time lag between appointed date and date of filing of the scheme before the Tribunal is beyond a year.

ii. The petitioner transferee company to comply with the requirements of section 133 of the Companies Act, 2013.

iii. The petitioner transferee company to remove ambiguity and clarify the matter regarding allotment of shares to the shareholders of petitioner companies No. 1 to 4, whether they will treat it as calls in arrear.

iv. The petitioner company 7 to submit an undertaking that after the demerger of financial assets they will have enough funds to settle statutory dues and to take responsibility in this regard of pending dues.

v. The petitioner transferee company to undertake the responsibility of the unsecured loan of petitioner companies 1 to 4 getting merged with the petitioner transferee company. Also, to undertake the obligation of the unsecured loan of the petitioner companies 5 to 18.

vi. Two petitioner companies namely Kamli Finstock Limited and Ma- Anandia Leasing and Finance Limited (petitioner companies 16 & 17) are covered under NBFC companies and the petitioner companies 16 & 17 need to clarify the matter and serve the notice of this scheme to the RBI.

vii. The taxation clause is missing in the scheme.

Submissions made by the petitioner companies in response to the observations of the Official Liquidator are as follows:

i. The date of filing of the scheme through application under section 230 of the Companies Act, 2013 is 18.02.2019 and the appointed date is 01.04.2018 and the gap between the same is not more than one year.

ii. The accounting treatment of the scheme is in accordance with provisions of accounting standard 14 and the certificate of compliance of accounting standard as prescribed under section 133 of the Companies Act, 2013 is forming part of the application.

iii. All the rights and liabilities of petitioner companies No. 1,2,3 and 4 would be transferred/vested with the petitioner transferee company and accordingly, as per the scheme the amount unpaid if any on the equity shares in the petitioner companies 1, 2, 3, and 4 shall be treated as calls in arrear in respect of such new equity shares and continue to an outstanding obligation from such equity shareholders in the petitioner transferee company.

iv. Petitioner company 7 undertakes to pay the statutory dues and take responsibility for the same.

v. The petitioner transferee company undertakes and committed for responsibility of the unsecured loan of petitioner companies 1 to 4 getting merged with the petitioner transferee company. Further, as regards to the obligation of the unsecured loan of the petitioner companies 5 to 18, the petitioner transferee company is committed to its obligation in respect of unsecured loans forming part of the undertaking getting transferred/demerged, whereas the obligations in respect of other unsecured loans would continue with the concerned petitioner transferor companies.

vi. The petitioner companies 16 and 17 do not fall under the criteria of NBFC and further declare that the companies are neither involved in any type of non-banking financial activities nor the company is obliged to comply with any guidelines regarding NBFC at any point of time.

vii. Point No. 8.3 of the scheme deals with the tax obligations.

11. In response to the notice served upon the Regional Director (RD) and Registrar of Companies (ROC), a combined representation was filed by the RD dated 12.11.2020 with respect to the petitioner companies wherein it has observed that the petitioner company 14 has a secured charge created of Rs 3,80,50,00,000/-. Clarification in this regard is prayed by the RD. ROC Ahmedabad in its report dated 02.09.2020 and ROC Gwalior in its report dated 28.08.2020 submitted that there are no complaints against the petitioner companies and also there is no complaint/representation against the scheme of amalgamation of the petitioner companies.

The petitioner companies in response to the RD report submitted that the charge under question is not forming part of a secured loan taken by the petitioner company 14. It is a contingent liability of the petitioner

company 14 on account of guarantee extended by it for the financial facilities of another group company and is not relevant in the matter.

Regional Director as well as the Official Liquidator also submitted that the related legal fees/expenses, for submitting the report and representing the matter may be paid by the petitioner companies.

12. Learned Assistant Director of the Regional Director office made an oral observation during the course of hearing on 29.04.2022, that the CBI has commenced an investigation against petitioner company 19 (Ankit Steels Pvt Ltd). However, no report in this regard was placed on record.

In response to the observation, petitioner company 19 submitted that CBI has sought some documents/information from the petitioner company 19 vide letter with respect to certain inquiries in the matter of other group companies (which is not a part of the present scheme of arrangement). Further, the petitioner company 19 has provided the required documents/information as sought by the CBI, which was acknowledged by the CBI department. Post aforesaid compliances the petitioner company 19 has not received any further communication in the matter. Moreover, such inquiry is not going to have any impact on the proposed scheme of arrangement. The petitioner company 19 undertakes to comply with any compliances/submissions/liabilities that arise in the future in this matter if any.

13. Considering the above reply filed by the petitioner companies, the observations made by the Regional Director, ROC, and the representation of the Official Liquidator stand satisfied.

14. It has been submitted by the learned advocate appearing for the petitioner companies that the Scheme is not against public policy. It has also been stated that it will not adversely impact any unsecured creditors, and there are no secured creditors of the petitioner companies.

It has also been submitted that all statutory obligations under all applicable laws shall be complied with.

15. On the basis of the above facts and submissions made by the learned advocate and after considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it is noted that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of amalgamation and demerger is bona fide and in the interest of the shareholders and creditors. As the result, Company Petition No. CP (CAA) No. 11 of 2020 is allowed. The Scheme envisaging amalgamation and demerger of M/s Manak Utensils Private Limited (Petitioner No. 1), M/s P J Beverage Private Limited (Petitioner No. 2), M/s Babsons Alloys Private Limited (Petitioner No. 3), M/s Amrit Dal Mill Private Limited (Petitioner No. 4), M/s Flame Real Estate Private Limited (Petitioner No. 5), M/s Antardhara Estate and Finvest Private Limited (Petitioner No. 6), M/s Nirmulya Estate and Finvest Private Limited (Petitioner No. 7), M/s Stud Estate and Finvest Private Limited (Petitioner No. 8), M/s Manavhit Finvest and Builders Private Limited (Petitioner No. 9), M/s Pushpraj Estate and Finvest Private Limited (Petitioner No. 10), M/s Manoneet Estate and Construction Private Limited (Petitioner No. 11), M/s Mangalmaya Estate and Finvest Private Limited (Petitioner No. 12), M/s Ekroopta Estate and Finvest Private Limited (Petitioner No. 13), M/s Jyotipriya Plantation and Orchads Private Limited (Petitioner No. 14), M/s A M Buildcon Private Limited (Petitioner No. 15), M/s Kamali Finstock Limited (Petitioner No. 16), M/s Ma-Anandia Leasing and Finance Limited (Petitioner No. 17), M/s Surendra Petrochem Private Limited (Petitioner No. 18) with M/s Ankit Steels Private Limited (Petitioner No. 19) is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors, and all concerned under the scheme.

16. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule, or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the petitioners.

17. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc., or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

18. This Tribunal orders as under:

I. The Scheme of Arrangement as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the petitioner companies and their shareholders and creditors and all concerned under the Scheme.

II. It is declared that the transferor companies shall be dissolved without winding up.

III. All the property annexed herewith as **"Annexure B"**, rights and power of the transferor companies and the demerged undertaking of the demerged companies, specified in the schedule hereto, and all other properties, rights, and powers of the transferor companies and the demerged undertaking of the demerged companies be transferred without further act or deed to the petitioner transferee company.

IV. All the liabilities and duties of the transferor companies and the demerged undertaking of the demerged companies be transferred without further act or deed to the petitioner transferee company and accordingly the same shall pursuant to section 232 of the Act become the liabilities and duties of the petitioner transferee company.

V. All proceedings, if any, now pending or against the transferor companies and the demerged undertaking of the demerged companies be continued by or against the petitioner transferee company.

VI. The petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration, and on such certified copy being so delivered, the entire undertaking of the transferor companies and the demerged undertaking of the demerged companies shall stand transferred to the petitioner transferee company and the Registrar of Companies shall place all documents relating to the transferor companies and the demerged undertaking of the demerged companies to the file kept by him in relation to the petitioner transferee company and the files relating to the said companies shall be treated accordingly.

VII. The petitioner companies are further directed to file a copy of this order along with a copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to a physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

VIII. All concerned Authorities are to act on a copy of this order along with the Scheme authenticated by the Registrar of this Tribunal, and the Registrar shall issue the certified copy of this order along with the Scheme immediately.

IX. The petitioner companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the transferor Companies and the demerged undertaking of the demerged company attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

X. The legal fees and expenses of the office of the Regional Director are quantified at Rs 10,000/- with respect to the petitioner companies. The said fees to the Regional Director shall be paid by the petitioner transferee company.

XI. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs 10,000/- with respect to the petitioner transferor companies. The said fees to the Official Liquidator shall be paid by the petitioner transferee company.

XII. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

XIII. The Company Petition CP (CAA) No. 11 of 2020 connected with CA (CAA) No. 93 of 2019 is disposed of. No order as to costs.

-Sd-

KAUSHALENDRA KUMAR SINGH
Member (Technical)

-Sd-

Dr. MADAN B. GOSAVI
Member (Judicial)

KN

~~ANNEXURE - 9~~

~~1187~~

1559

(MP) CP (CAA) 110/2020 in CA (AA) 93 of 2019

Annexture - A

SCHEME OF ARRANGEMENT

BETWEEN

MANAK UTENSILS PRIVATE LIMITED
(Transferor Company No. 1)
AND
P. J. BEVERAGE PRIVATE LIMITED
(Transferor Company No. 2)
AND
BARSONS ALLOYS PRIVATE LIMITED
(Transferor Company No. 3)
AND
AMRIT DALL MILL PRIVATE LIMITED
(Transferor Company No. 4)
AND
FLAME REAL ESTATE PRIVATE LIMITED
(Transferor Company No. 5)
AND
ANTARDHARA ESTATE AND FINVEST PRIVATE LIMITED
(Transferor Company No. 6)
AND
NIRMULYA ESTATE AND FINVEST PRIVATE LIMITED
(Transferor Company No. 7)
AND
STUD ESTATE AND FINVEST PRIVATE LIMITED
(Transferor Company No. 8)
AND
MANAVHIT FINVEST AND BUILDERS PRIVATE LIMITED
(Transferor Company No. 9)
AND

ATTESTED
MOHAN PAL
ADV. DIST. INDORE
M.P. GOVT.

NATIONAL COMPANY LAW TRIBUNAL
INDORE

~~188~~ (1560)

PUSHPRAJ ESTATE AND FINVEST PRIVATE LIMITED

(Transferor Company No. 10)

AND

MANONEET ESTATE AND CONSTRUCTION PRIVATE LIMITED

(Transferor Company No. 11)

AND

MANGALMAYA ESTATE AND FINVEST PRIVATE LIMITED

(Transferor Company No. 12)

AND

EKROOPTA ESTATE AND FINVEST PRIVATE LIMITED

(Transferor Company No. 13)

AND

JYOTIPRIYA PLANTATION AND ORCHADS PRIVATE LIMITED

(Transferor Company No. 14)

AND

A M BUILDCON PRIVATE LIMITED

(Transferor Company No. 15)

AND

KAMALI FINSTOCK LIMITED

(Transferor Company No. 16)

AND

MA-ANANDIA LEASING AND FINANCE LIMITED

(Transferor Company No. 17)

AND

SURENDRA PETROCHEM PRIVATE LIMITED

(Transferor Company No. 18)

AND

ANKIT STEELS PRIVATE LIMITED

(Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

PREAMBLE

The present Scheme of Arrangement is presented under Sections 230 to 232 of the Companies Act, 2013 and the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 framed by the Central Government under the Companies Act, 2013 and such other provisions and rules as may be applicable to the companies, from time to time, for amalgamation of the Transferor Company No. 1, 2, 3 and 4 with the Transferee Company and for demerger of the financial business undertaking of the Transferor 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 into the Transferee Company.

1. DEFINITIONS

In this scheme, unless inconsistent with the subject or the context thereof, the expressions hereunder shall have the following meanings:

1.1 *"Act"* means the Companies Act, 2013 and any amendments and/or re-enactment thereof, as may be applicable to the companies in India from time to time.

1.2 *"Appointed Date"* means 1st April, 2018.

1.3 *"Transferor Company No. 1, 2, 3 and 4"* means Manak Utensils Private Limited, P.J. Beverage Private Limited, Babsons Alloys Private Limited, Amrit Dall Mill Private Limited companies incorporated under the Companies Act.

1.4 *"Amalgamating Companies"* means same as the Transferor Company No. 1, 2, 3 and 4.

1.5 *"Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18"* means Flame Real Estate Private Limited, Antardhara Estate and Finvest Private Limited, Nirmulya Estate and Finvest Private Limited, Stod Estate and Finvest Private Limited, Manavhit Finvest and Builders Private Limited, Pushpraj Estate and Finvest Private Limited, Manoneet Estate & Construction Private Ltd., Mangalmaya Estate and Finvest Private Limited, Ekroopta Estate and Finvest Private Limited, Jyotipriya Plantation & Orchads Private Limited, A

MOHAN PAL
PARTY DISTT-INDORE
M.P. GOVT.

NATIONAL COMPANY LAW TRIBUNAL INDORE

M Buildcon Private Limited, Kamali Finstock Limited, Ma-Anandia Leasing and Finance Limited, Surendra Petrochem Private Limited, companies incorporated under the Companies Act.

1.6 *"Demerged Companies"* means same as the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

1.7 *"Transferee Company"* means Ankit Steels Private Limited a Company incorporated under the Companies Act.

1.8 *"Amalgamated Company"* means same as the Transferee Company.

1.9 *"Resulting Company"* means same as the Transferee Company.

1.10 *"Effective Date"* means the last of the dates on which the certified copies of the order sanctioning this scheme of arrangement as passed by the Hon'ble NCLT, is filed with the concerned Registrar of Companies. References in this scheme to the date of *"Coming into effect of this Scheme"* or *"Upon the Scheme being effective"* shall mean the effective date.

1.11 *"NCLT"* means the jurisdictional Bench of the Hon'ble National Company Law Tribunal NCLT, at Ahmedabad.

1.12 *"Rules"* means the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and such other rules and regulations as framed by the Central Government and for the time being in force.

1.13 *"Scheme"* or *"This Scheme"* means this scheme of arrangement of amalgamation/demerger in its present form submitted to the Hon'ble National Company Law Tribunal NCLT, Ahmedabad Bench and transfer of undertakings of the Transferor Company No. 1, 2, 3 and 4 and transfer of financial business undertakings of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 into the transferee company in its present form and/or with any amendment or modification(s) approved, imposed or directed by the Hon'ble NCLT.

1.14 **The Undertaking**

a) "The Undertaking in respect of the Transferor Company No. 1, 2, 3 and 4" shall mean:

i. The business and undertaking of the Transferor Company No. 1, 2, 3 and 4 including all its properties, assets, claims, estates, interests, powers, rights and titles of every description of, or relating to, the Transferor Company No. 1, 2, 3 and 4 as on the Appointed Date (hereinafter referred to as **"the said assets of Transferor Company No. 1, 2, 3 and 4"**).

ii. All the debts, duties, liabilities and obligations of every description of, or pertaining to, the Transferor Company No. 1, 2, 3 and 4 as on the Appointed Date, whether provided for or not in the books of account of the Transferor Company No. 1, 2, 3 and 4 and whether disclosed or undisclosed in its balance sheet (hereinafter referred to as **"the said liabilities Transferor Company No. 1, 2, 3 and 4"**).

iii. Without prejudice to the generality of clause 1.14(a)(i) above, the Undertaking of the Transferor Company No. 1, 2, 3 and 4 shall include advantages of whatsoever nature, agreements, allotments, approvals, arrangements, authorizations, benefits, capital work in progress, concessions, rights and benefit of all contracts, consents, current assets, easements, engagements, exemptions, fixed assets, industrial and intellectual property rights of any nature whatsoever and licenses in respect thereof, intangibles, investments, leasehold rights, liberties, ownership flats, patents, permits, powers of every kind, nature and description whatsoever, privileges, provision, funds, quota rights, registrations, reserves, and all properties, movable and immovable, real, corporeal or incorporeal, in possession or reversion, present or contingent of whatsoever nature and wheresoever situated, right to use and avail of telephones, telexes, facsimile

ITESTED

MANAK PAL

NATIONAL COMPANY LAW TRIBUNAL INDORE

connections, installations and other communication facilities and equipment's, tenancy rights, titles, trademarks, trade names, all other utilities held by the Transferor Company No. 1, 2, 3 and 4 or to which the Transferor Company No. 1, 2, 3 and 4 are entitled to on the Appointed Date and all other interests wheresoever situate, belonging to or in the ownership, power or possession and in the control of or vested in or granted in favor of or enjoyed by or arising to the Transferor Company No. 1, 2, 3 and 4.

b) "The Undertaking in respect of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18" shall mean:

i. The financial business undertaking of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 including all its investments in equity shares, preferential shares, debentures, bonds, loans, all type of financial assets, claims, interests, rights and titles of every description of, or relating to, the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as on the Appointed Date and as reported in the schedule of the segment reporting in the financial statement of the respective Companies, as on the Appointed Date, (hereinafter referred to as **"the said assets of Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18"**).

ii. All the debts, duties, liabilities and obligations of every description relating to the said assets of Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as on the Appointed Date, whether provided for or not in the books of account of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and whether disclosed or undisclosed in its balance sheet (hereinafter referred to as **"the said assets of Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18"**).

ATTESTED
AN PAL
INDORE

NATIONAL COMPANY LAW TRIBUNAL
INDORE

iii. Without prejudice to the generality of clause 1.14(b)(i) above, the Undertaking of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall include advantages of whatsoever nature, agreements, allotments, approvals, arrangements, authorizations, benefits, concessions, rights held by the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 relating to the said assets of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or to which the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 are entitled to on the Appointed Date relating to said assets of the Tranferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

2. RATIONALE OF THE SCHEME

With a view to achieve better and more profitable utilization of combined resources of all the companies, rationalization of the management structure and economies of scale for further and stable modernization, growth, expansion and diversification of the respective businesses and to be able to withstand any recession in business, it is proposed to amalgamate the Transferor Company No. 1, 2, 3 and 4 with the transferee company and demerge the financial business undertaking of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 into the Transferee Company.

3. DETAILS OF THE TRANSFEROR COMPANY 1, 2, 3 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18:

3.1 *Manak Utensils Private Limited*, (CIN: U28996MP1990PTC005782) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 11th April 1990 and has its registered office at 405, Panchwati Appartment 2/1, Yeshwant

Niwas Road, Indore-452003 (MP). The Company is engaged into the business of manufacturing/dealing in the utensils of Allumiunme/iron metals apart from finance/investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.2 *P. J. Beverage Private Limited* (CIN: U15541MP1981PTC001846) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 13th November, 1981 and has its registered office at 88, Kasera Bazar, Indore-452002 (MP). The Company is engaged into the business of manufacturing/dealing in beverages apart from financial/investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.3 *Babsons Alloys Private Limited*, (CIN: U27320MP1986PTC003524) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 13th August, 1986 and has its registered office at 88, Kasera Bazar, Indore-452002 (MP). The Company is engaged into the business of manufacturing/dealing of alloys metals apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.4 *Amrit Dall Mill Private Limited*, (CIN: U01531MP1995PTC010007) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 28th September, 1995 and has its registered office at 20, Kibe Compound, opp. Dawa Bazar Indore-452001 (MP). The Company is engaged into the business of manufacturing and dealing in the business of milling of grains/pulses/allied products apart from finance and investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

Flame Real Estate Private Limited, (CIN: U70101MP1995PTC009794) is a private limited company duly

TESTED

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

registered and incorporated under the provisions of the Companies Act, 31st July, 1995 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of dealing in real estate/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.6 *Antardhara Estate and Finvest Private Limited,* (CIN: U45201MP1996PTC011306) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 11th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.7 *Nirmulya Estate and Finvest Private Limited,* (CIN: U45201MP1996PTC011303) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 11th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.8 *Stud Estate and Finvest Private Limited,* (CIN: U45201MP1996PTC011308) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 11th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is

TTESTED
MUKHIM PAL
CIETY, INDORE

NATIONAL COMPANY LAW TRIBUNAL INDORE

permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.9 ***Manavhit Finvest and Builders Private Limited,*** (CIN: U01211MP1996PTC011378) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 04th November, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.10 ***Pushpraj Estate and Finvest Private Limited,*** (CIN: U45201MP1996PTC011304) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 11th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.11 ***Manoneet Estate and Construction Private Limited,*** (CIN: U45201MP1996PTC011366) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 28th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

TESTED
RADHAM PAL
DISTT. INDORE
GOVT.

3.12 ***Mangalmaya Estate and Finvest Private Limited,*** (CIN: U45201MP1996PTC011305) is a private limited company duly registered and incorporated under the provisions of the Companies

Act, on 11th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP).The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.13 *Ekroopta Estate and Finvest Private Limited,* (CIN: U45201MP1996PTC011301) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 11th October, 1996 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of real estates/allied activities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.14 *Jyotipriya Plantation & orchads Private Limited,* (CIN: U01409MP1994PTC008344) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 18th May, 1994 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of farming & horticultureand dealing in all kinds of products apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.15 *A M Buildcon Private Limited,* (CIN: U45200MP2008PTC020782) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 13th June, 2008 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of dealing in real estates/allied activities apart from finance & investment activities, which is permissible under the main objects

TTESTED
MOHAN PAL
DIST. INDORE
GOVT.

of the company. The shares of the company are not listed on any exchange.

3.16 *Kamail Finstock Limited,* (CIN: U67120GJ1996PLC029205) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 02th April, 1996 and has its registered office at B-22, 512 Tirath Bhoomi Tenament Opp. Shakti Estate Ahmedabad-382443 (GJ) The Company is engaged into the business of dealing in shares & securities apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.17 *Ma-Anandla Leasing and Finance Limited.,* (CIN: U65910GJ1997PLC031573) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 24th January, 1997 and has its registered office at 5 Shree Vallabh Industrial Estate Rakhial Ahmedabad-380023 (GJ). The Company is engaged into the business of finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

3.18 *Surendra Petrochem Private Limited,* (CIN: U23209MP2003PTC015910) is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 26th June, 2003 and has its registered office at 405, Panchwati Apartment, 9/2/1, Yeshwant Niwas Road, Indore-452003, (MP). The Company is engaged into the business of dealing in petrochem/allied products apart from finance & investments, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

MOHAN PAL

CAPITAL STRUCTURE OF THE TRANSFEROR COMPANY 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16,17 and 18:

NATIONAL COMPANY LAW TRIBUNAL INDORE

4.1 The share capital structure of *Manak Utensils Private Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorized:	
10,000 Equity Shares of Rs. 100/- each	10,00,000/-
Total	**10,00,000/-**
Issued, Subscribed and Paid-up:	
5,000 Equity Shares of Rs. 100/- each	5,00,000/-
Total	**5,00,000/-**

Subsequent to the above mentioned there has been no change in the share capital structure of *Manak Utensils Private Limited*.

4.2 The share capital structure of *P. J. Beverage Private Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorized:	
10000 Equity Shares of Rs. 100/- each	10,00,000/-
5000 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	5,00,000/-
Total	**15,00,000/-**
Issued, Subscribed and Paid-up:	
1270 Equity Shares of Rs. 100/- each	1,27,000/-
2600 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	2,60,000/-
Total	**3,87,000/-**

Subsequent to the above mentioned there has been no change in the share capital structure of *P.J. Beverage Private Limited*.

4.3 The share capital structure of *Balsons Alloys Private Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

NATIONAL COMPANY LAW TRIBUNAL INDORE

1572

+200

Particulars	Amount in Rs.
Authorized:	
40,000 Equity Shares of Rs. 100/- each	40,00,000/-
Total	**40,00,000/-**
Issued, Subscribed and Paid-up:	
103 Equity Shares of Rs. 100/- each	10,300/-
Total	**10,300/-**

Subsequent to the above mentioned there has been no change in the share capital structure of *Babsons Alloys Private Limited*.

4.4 The share capital structure of *Amrit Dall Mill Private Limited*, as per the last audited balance sheet as on 28th September, 2018 is as under: -

Particulars	Amount in Rs.
Authorized:	
2,00,000 Equity Shares of Rs. 5/- each	10,00,000/-
Total	**10,00,000/-**
Issued, Subscribed and Paid-up:	
77,640 Equity Shares of Rs. 5/- each	3,88,200/-
Total	**3,88,200/-**

Subsequent to the above mentioned there has been no change in the share capital structure of *Amrit Dall Mill Private Limited*.

4.5 The share capital structure of *Flame Real Estate Private Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
5,000/- Equity Shares of Rs. 100/- each	5,00,000/-
Total	5,00,000/-
Issued, Subscribed and Paid Up Capital	

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

120

1573

1,800 Equity Shares of Rs. 100/- each	1,80,000/-
Total	1,80,000/-

Subsequent to the above mentioned there has been no change in the share capital structure of **Flame Real Estate Private *Limited.***

4.6 The share capital structure of **Antardhara Estate and Finvest Private *Limited,*** as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
6000 Equity Shares of Rs. 100/- each	6,00,000/-
14000 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	14,00,000/-
Total	20,00,000/-
Issued, Subscribed and Paid Up Capital	
1620 Equity Shares of Rs. 100/- each	1,62,000/-
13150 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	13,15,000/-
Total	14,77,000/-

Subsequent to the above mentioned there has been no change in the share capital structure of **Antardhara Estate and Finvest Private *Limited.***

4.7 The share capital structure of **Nirmulya Estate and Finvest Private *Limited,*** as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
1000 Equity Shares of Rs. 100/- each	1,00,000/-

TESTED
ARJUN PAL
ADVOCATE
DISTT. INDORE
M.P. GOVT.

NATIONAL COMPANY LAW TRIBUNAL

1252

14000 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	14,00,000/-
Total	15,00,000/-
Issued, Subscribed and Paid Up Capital	
620 Equity Shares of Rs. 100/- each	62,000/-
13265 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	13,26,500/-
Total	13,88,500/-

Subsequent to the above mentioned there has been no change in the share capital structure of Nirmulya Estate and Finvest Private *Limited.*

4.8 The share capital structure of Stud Estate and Finvest Private *Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
1,000 Equity Shares of Rs. 100/- each	1,00,000/-
14000 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	14,00,000/-
Total	15,00,000/-
Issued, Subscribed and Paid Up Capital	
920 Equity Shares of Rs. 100/- each	92,000/-
13265 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	13,26,500/-
Total	14,18,500/-

Subsequent to the above mentioned there has been no change in the share capital structure of Stud Estate and Finvest Private *Limited.*

ATTESTED
MOHAN PAL
STAMP DISTT. INDORE
M P GOVT

1203

1575

4.9 The share capital structure of Manavhit Finvest and Builders Private *Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
3000 Equity Shares of Rs. 100/- each	3,00,000/-
17000 10% Non Cummulative Preference Shares of Rs.100/- each	17,00,000/-
Total	20,00,000/-
Issued, Subscribed and Paid Up Capital	
1775 Equity Shares of Rs. 100/- each	1,77,500/-
16955 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	16,95,500/-
Total	18,73,000/-

Subsequent to the above mentioned there has been no change in the share capital structure of Manavhit Finvest and Builders Private *Limited*.

4.10 The share capital structure of Pushpraj Estate and Finvest Private *Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
1000 Equity Shares of Rs. 100/- each	1,00,000/-
14000 10% Non Cummulative Redeemable Preference Shares of Rs.100/- each	14,00,000/-
Total	15,00,000/-
Issued, Subscribed and Paid Up Capital	
920 Equity Shares of Rs. 100/- each	92,000/-
12760 10% Non Cummulative Redeemable	12,76,000/-

ATTESTED
MOHAN PAL
NOTARY DISTT. INDORE
M P GOVT

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Preference Shares of Rs.100/- each	
Total	13,68,000/-

Subsequent to the above mentioned there has been no change in the share capital structure of Pushpraj Estate and Finvest Private *Limited.*

4.11 The share capital structure of Manoneet Estate & Construction Private *Limited*, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
7,000 Equity Shares of Rs. 100/- each	7,00,000/-
Total	7,00,000/-
Issued, Subscribed and Paid Up Capital	
4,100 Equity Shares of Rs. 100/- each	4,10,000/-
Total	4,10,000/-

Subsequent to the above mentioned there has been no change in the share capital structure of Manoneet Estate & Construction Private *Limited*

4.12 The share capital structure of Mangalmay Estate and Finvest Private Ltd., as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
7,000 Equity Shares of Rs. 100/- each	7,00,000/-
Total	7,00,000/-
Issued, Subscribed and Paid Up Capital	
3,910 Equity Shares of Rs. 100/- each	3,91,000/-
Total	3,91,000/-

ATTESTED
MOHAN PAL
DISTT. INDORE
M P GOVT

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Subsequent to the above mentioned there has been no change in the share capital structure of **Mangalmay Estate and Finvest Private Ltd.**

4.13 The share capital structure of **Ekroopta Estate and Finvest Private Ltd.**, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
5,000 Equity Shares of Rs. 100/- each	5,00,000/-
Total	**5,00,000/-**
Issued, Subscribed and Paid Up Capital	
2,900 Equity Shares of Rs. 100/- each	2,90,000/-
Total	**2,90,000/-**

Subsequent to the above mentioned there has been no change in the share capital structure of **Ekroopta Estate and Finvest Private Ltd.**

4.14 The share capital structure of **Jyotipriya Orchids and Plantations Private Ltd.**, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
1,00,000 Equity Shares of Rs. 10/- each	10,00,000/-
Total	**10,00,000/-**
Issued, Subscribed and Paid Up Capital	
47,000 Equity Shares of Rs. 10/- each	4,70,000/-
Total	**4,70,000/-**

Subsequent to the above mentioned there has been no change in the share capital structure of **Jyotipriya Orchids and Plantations Private Ltd.**

ATTESTED
BHOLAN PAL
NOTARY DISTT. INDORE
M P GOVT

NATIONAL COMPANY LAW TRIBUNAL INDORE

4.15 The share capital structure of A M Buildcon Private Ltd., as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000/-
5,00,000 10% Non Cummulative Redeemable Preference Shares of Rs.10/- each	50,00,000/-
Total	**51,00,000/-**
Issued, Subscribed and Paid Up Capital	
10000 Equity Shares of Rs. 10/- each	1,00,000/-
4,20,000 10% Non Cummulative Redeemable Preference Shares of Rs.10/- each	42,00,000/-
Total	**43,00,000/-**

Subsequent to the above mentioned there has been no change in the share capital structure of A M Buildcon Private Ltd.

4.16 The share capital structure of Kamali Finstock Ltd., as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
3,50,000 Equity Shares of Rs. 10/- each	35,00,000/-
Total	**35,00,000/-**
Issued, Subscribed and Paid Up Capital	
2,93,850 Equity Shares of Rs. 10/- each	29,38,500/-
Total	**29,38,500/-**

Subsequent to the above mentioned there has been no change in the share capital structure of A M Buildcon Private Ltd.

Kamali

ATTESTED
MOHAN PAL
DISTT. INDORE

4.17 The share capital structure of Ma-Anandiya Leasing and Finance Ltd., as per the last audited balance sheet as on 31st March, 2018 is as under: -

NATIONAL COMPANY LAW TRIBUNAL INDORE

Particulars	Amount in Rs.
Authorised Capital	
2,50,000 Equity Shares of Rs. 10/- each	25,00,000/-
Total	25,00,000/-
Issued, Subscribed and Paid Up Capital	
2,48,830 Equity Shares of Rs. 10/- each	24,88,300/-
Total	24,88,300/-

Subsequent to the above mentioned there has been no change in the share capital structure of **Ma-Anandiya Leasing and Finance Ltd.**

4.18 The share capital structure of **Surendra Petrochem Private Ltd.**, as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorised Capital	
10,000 Equity Shares of Rs. 100/- each	10,00,000/-
Total	10,00,000/-
Issued, Subscribed and Paid Up Capital	
4,492 Equity Shares of Rs. 100/- each	4,49,200/-
Total	4,49,200/-

Subsequent to the above mentioned there has been no change in the share capital structure of **Surendra Petrochem Private Ltd.**

5. **DETAILS OF THE TRANSFEREE COMPANY:**

Ankit Steels Private Limited, (CIN: U27108MP1981PTC001742), is a private limited company duly registered and incorporated under the provisions of the Companies Act, on 19th March, 1981 and has its registered office at 88, Kasera Bazar, Indore-452002 (MP). The Company is mainly engaged into the business of manufacturing/dealing in aluminium/iron metals

TESTED
MOHAN PAL
NCLT, INDORE





apart from finance & investment activities, which is permissible under the main objects of the company. The shares of the company are not listed on any exchange.

6. **CAPITAL STRUCTURE OF THE TRANSFEREE COMPANY:**

The share capital structure of ***Ankit Steels Pvt Ltd*** as per the last audited balance sheet as on 31st March, 2018 is as under: -

Particulars	Amount in Rs.
Authorized:	
12,50,000 Equity Shares of Rs. 10/- each	1,25,00,000/-
25000 10% Non-Cumulative Redeemable Preference Shares of Rs. 100/- each	25,00,000/-
Total	**1,50,00,000/-**
Issued, Subscribed and Paid-up:	
10,79,000 Equity Shares of Rs. 10/- each	1,07,90,000/-
17,500 Non Cumulative Preference Shares of Rs. 100/- each	17,50,000/-
Total	**1,25,40,000/-**

There is no change in the share capital structure of ***Ankit Steels Private Limited*** after 31st March, 2018.

7. **TRANSFER AND VESTING OF *UNDERTAKING(S)* OF TRANSFEROR COMPANY NO. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 AND 18:**

7.1 **Transfer of the Undertaking(s) of Transferor Company No. 1, 2, 3 and 4 With effect from the Appointed Date, and subject to the** provisions of the Scheme in relation to the mode of transfer and vesting, the entire Undertaking of the Transferor Company No. 1, 2, 3 and 4 including the said assets Transferor Company No. 1, 2, 3 and 4 and the said liabilities Transferor Company No. 1, 2, 3 and 4 as on the

ATTESTED
BY
BHUVAN PAL
DISTT. INDORE

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Appointed Date shall, pursuant to the provisions of section 232 and other applicable provisions of the Act, without any further Act, deed, instrument, matter or thing, be and shall stand transfer to and vested in or deemed to have been transfer to vested in the Transferee Company so as to become the Undertaking of the Transferee Company but subject the charges existing thereon or on the said assets on the Appointed Date.

7.2 **Transfer of the Undertaking(s) of Transferor Company No. 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 18 and 19**

With effect from the Appointed Date, and subject to the provisions of the Scheme in relation to the mode of transfer and vesting, the entire Financial Business Undertaking of the Transferor Company No. 5 to 18 including the said assets of Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the said liabilities of Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as on the Appointed Date shall, pursuant to the provisions of section 232 and other applicable provisions of the Act, without any further Act, deed, instrument, matter or thing, be and shall stand transfer to and vested in or deemed to have been transfer to vested in the Transferee Company so as to become the Undertaking of the Transferee Company but subject the charges existing thereon or on the said assets on the Appointed Date.

7.3 **Transfer of Assets Subject to The Charges**

The transfer/ vesting as aforesaid shall be subject to charges/ hypothecation/ mortgage subsisting over or in respect of the said assets or any part thereof on the Appointed date.

Provided however any reference in any security documents or arrangements to which the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 is a party and under which any assets/ financial assets of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 are offered or agreed to be offered as security for any financial assistance, or obligations, shall

ATTESTED
BHOJAN PAL
NOTARY DIST. INDORE
M.P. GOVT.

be construed as reference only to the assets pertaining to the concerned undertaking of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 which is vested in the Transferee Company by virtue of the aforesaid clause, to the end and intent that such security, mortgage and charge shall not extend or be deemed to extend, or be applicable to any other assets of any other units, undertakings, divisions or to other properties of the Transferee Company and subject to the contents and approvals of the persons entitled to the charge on any assets or properties of the Transferee Company.

7.4 **Mode of Transfer of Assets**

It is expressly provided that:

(a) Such of the said assets as are movable in nature or are otherwise capable of transfer by physical delivery or by endorsement and delivery, including cash on hand, shall be also transferred by the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 to the Transferee Company to the end and intent that the property herein passes to the Transferee Company pursuant to the provisions of the section 232 of the Act and an integral part of the undertakings.

(b) The assets other than those referred to above shall without any further act, instrument, deed matter or thing, be transferred to and vested in and/or deemed to be transferred to and vested in the Transferee Company on the Appointed Date pursuant to the provisions of section 232 of the Act.

7.5 **Transfer of Liabilities**

Pursuant to the transfer of undertaking as provided in clause 7.1 and 7.2 above, and subject to the provisions of the Scheme in relation to the mode of transfer and vesting, the said liabilities of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18, shall also be and stand transferred or deemed to be transferred,

NATIONAL COMPANY LAW TRIBUNAL

without further act, instrument, deed matter or thing, to the Transferee Company, pursuant to the provisions of section 232 of the Act, so as to become as and from the Appointed date, the debts, duties, liabilities and obligations of the Transferee Company and further that for the purpose of giving effect to the provisions of this clause, it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of such debts, liabilities, duties and obligations have arisen.

Provided that, the Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions thereof, if so required, under any law or otherwise, execute in favor of the secured creditors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or in favor of any other party to any contract or arrangement to which the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 is a party such deeds of confirmation or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Transferee Company shall under the provisions of the Scheme be deemed to be authorized to execute any such writings on behalf of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and to implement or carry out all such formalities or compliances referred to above on the part of Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 to be carried or performed.

It is clarified that the Scheme shall not in any manner affect the rights and interests of the creditors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or deemed to be prejudicial to their interests and in particular the secured and statutory creditors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall continue to enjoy and hold charge upon their respective securities.

ATTESTED
MOHAN PAL
NOTARY DISTT. INDORE
M. P. GOVT

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

8. CONDUCT OF BUSINESS BY TRANSFEROR COMPANY NO. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 AND 18 TILL THE EFFECTIVE DATE

8.1 Transferor Company No. 1, 2,3 and 4 as Trustee

With effect from the Appointed Date, The Transferor Company No. 1, 2, 3 and 4:

(a) Shall be deemed to have held and stood possessed of and all shall hold and stand possessed of the entire undertaking of the Transferor Company No. 1, 2, 3 and 4 for and on account of and for the benefit of and in trust for the Transferee Company, and

(b) Shall carry and be deemed to be carrying on all businesses and activities relating to the Transferor Company No. 1, 2, 3 and 4 for and on account of and for the benefit of and in trust for the transferee Company.

8.2 Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as Trustee

With effect from the Appointed Date, The Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18:

(a) Shall be deemed to have held and stood possessed of the entire financial business undertaking of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 for and on account of and for the benefit of and in trust for the Transferee Company, and

(b) Shall carry and be deemed to be carrying on all financial businesses activities relating to the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 for and on account of and for the benefit of and in trust for the transferee Company.

TESTED
MOHAN PAL
DIST. INDORE
M.P. GOVT.

8.3 Transfer of Profits and Losses

With effect from the Appointed date, all the profits including taxes, if any, thereon or incomes arising to the Transferor Company No. 1, 2, 3

and 4 or any, costs and charges, expenditure or losses arising or incurred by the Transferor Company No. 1, 2, 3 and 4 shall for all purposes be treated and deemed to be and accrue as the profits, taxes or incomes, or costs, charges, expenditure or losses of the Transferee Company, as the case may be.

With effect from the Appointed date, all the financial business undertaking profits including taxes, if any, thereon or incomes arising from financial business undertaking to the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or financial business undertaking costs and charges, expenditure or losses arising or incurred by the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall for all purposes be treated and deemed to be and accrue as the profits, taxes or incomes, or costs, charges, expenditure or losses of the Transferee Company, as the case may be.

8.4 **Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 to Carry on Its Business with Diligence**

With effect from the Appointed date, the Transferor Company No. 1, 2, 3 and 4 has carried on and hereafter undertakes to carry on its business with reasonable diligence, and utmost business prudence and from the date of acceptances of the Scheme by the respective Boards of the Transferor Company No. 1, 2, 3 and 4 and Transferee Company, the Transferor Company No. 1, 2, 3 and 4 shall not alienate, charge, encumber, mortgage or otherwise deal with its undertaking including any of the said assets or any part thereof, without the prior written consent of the Transferee Company, save and except in the ordinary course of business, or pursuant to any pre-existing obligation undertaken by the Transferor Company No. 1, 2, 3 and 4 prior to the Appointed Date.

Provided however that the Transferor Company No. 1, 2, 3 and 4 shall be entitled in the ordinary course of business in relation to its borrowings required in the connection with its business and operation

ATTESTED
MOHAN PAL
NOTARY DISTT. INDORE
M. P. GOVT

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

to borrow in the form of loans and further consent of the Transferee Company shall not be required in this behalf.

With effect from the Appointed date, the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 has carried on and hereafter undertakes to carry on its financial business with reasonable diligence, and utmost business prudence and from the date of acceptances of the Scheme by the respective Board of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and Transferee Company, the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall not alienate, charge, encumber, mortgage or otherwise deal with its financial business undertaking including any of the said financial assets or any part thereof, without the prior written consent of the Transferee Company, save and except in the ordinary course of business, or pursuant to any pre-existing obligation undertaken by the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 prior to the Appointed Date.

Provided however that the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall be entitled in the ordinary course of business in relation to its borrowings required in the connection with its financial business and operation to borrow in the form of loans and further consent of the Transferee Company shall not be required in this behalf.

8.5 **Transferor Company No. 1, 2, 3 and 4 Not Permitted to Undertake New Business from The Date of Acceptance of The Scheme by The Respective Boards of The Transferor Company No. 1, 2, 3 and 4 and The Transferee Company without the prior consent of Transferee Company.**

8.6 **Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 Not Permitted to Undertake New Financial Business from The Date of Acceptance of The Scheme by The Respective Boards of The Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15,**

ATTESTED
ROHAN PAL
NOTARY DISTT. INDORE
GOVT

NATIONAL COMPANY LAW TRIBUNAL

16, 17 and 18 and The Transferee Company without the prior consent of Transferee Company.

8.7 **No Change to be Effected in The Capital Structure of Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and Transferee Company**

Save as specifically provided this Scheme, and except by mutual consent of the Boards, neither the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 nor the Transferee Company shall make any changes in their capital structure, by any increase, decrease, reduction, reclassification, sub-division or consolidation, re-organization, or in any other manner which may in a way affect the Share Allotment Ratio prescribed in clause 17.1

Provided that no such consent is required for the Transferee Company to increase its Authorised Capital, as need to be enhanced to give effect to the provisions of this Scheme or pursuant to any existing obligation of the Transferee Company.

8.8 **No Change In The Terms and Conditions of Employment of The Transferor Company No. 1, 2, 3 and 4 Employees**

From the date of acceptance of the Scheme by the respective Boards of the Transferor Company No. 1, 2, 3 and 4 and the Transferee Company, the Transferor Company No. 1, 2, 3 and 4 shall not vary the terms and conditions of the employment of its employees except in the ordinary course of business.

8.9 **No Change In The Terms and Conditions of Employment of The Transferor Company No. 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 Employees**

From the date of acceptance of the Scheme by the respective Boards of the Transferor Company No. 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company, the Transferor Company No. 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall not vary the terms and conditions of the employment of its employees under

ATTESTED
MOHAN PAL
NOTARY DIST. INDORE

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

financial business undertaking except in the ordinary course of business.

9. ENFORCEMENT OF LEGAL PROCEEDINGS

All proceedings of whatsoever nature (legal and others, including any suits, appeals, arbitrations, execution proceedings, revisions, writ petitions, if any) by or against the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall not abate, be discontinued or be in any way prejudicially affected by reason of the transfer of the Undertakings of the Transferor Company No. 1, 2, 3 and 4 or of anything contained in this Scheme or by reason of the transfer of the financial business Undertakings of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or of anything contained in this Scheme but the said proceedings, shall, till the Effective Date be continued, prosecuted and enforced by or against the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as if this Scheme had not been made and thereafter be continued, prosecuted and enforced by or against Transferee Company in the same manner and to the same extent as they would or might have been continued, prosecuted and enforced by or against the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 if this Scheme had not been made. The Transferee Company shall take steps to have the abovementioned proceedings continued in its name.

10. ENFORCEMENT OF CONTRACTS, DEEDS, BONDS AND OTHER INSTRUMENTS

Subject to the other provisions of this Scheme, all lawful agreements, arrangements, bonds, contracts, deeds and other instruments of whatsoever nature to which the Transferor Company No. 1, 2, 3 and 4 is a party to or to the benefit of which it may be eligible and which are subsisting or operative or having effect, shall till the Effective Date, be in full force and effect and may be enforced as fully and effectually as if, the Scheme had not been made

ATTESTED
MOHAN PAL
ARCHITECT INDORE
M.P. GOVT

NATIONAL COMPANY LAW TRIBUNAL INDORE

and thereafter, shall be in full force and effect against or in favour of the Transferee Company, as the case may be, and may be enforced as fully and effectually as if, instead of the Transferor Company No. 1, 2, 3 and 4 the Transferee Company had been a party or beneficiary thereto, subject to such changes and variations in the terms, conditions and provisions thereof as may be mutually agreed to between the Transferee Company and other parties thereto.

The Transferee Company shall enter into and/to execute deeds, writings or confirmations or enter into any arrangement, confirmations or novations in order to give formal effect to the provisions of this clause, if so required or if it becomes necessary.

Subject to the other provisions of this Scheme, all lawful agreements, arrangements, bonds, contracts, deeds and other instruments of whatsoever nature relating to financial business undertaking to which the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 is a party to or to the benefit of which it may be eligible and which are subsisting or operative or having effect, **shall till the Effective Date,** be in full force and effect and may be enforced as fully and effectually as if, the Scheme had not been made and thereafter, shall be in full force and effect against or in favour of the Transferee Company, as the case may be, and may be enforced as fully and effectually as if, instead of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18, the Transferee Company had been a party or beneficiary thereto, subject to such changes and variations in the terms, conditions and provisions thereof as may be mutually agreed to between the Transferee Company and other parties thereto.

The Transferee Company shall enter into and/to execute deeds, writings or confirmations or enter into any arrangement, confirmations or novations relating to financial business undertaking in order to give formal effect to the provisions of this clause, if so required or if it becomes necessary.

TESTED
MOHAN PAL
BY DISTT. INDORE
P.I P GOVT





11. **NO EFFECT OF TRANSFER OF UNDERTAKINGS ON THE TRANSACTIONS/ CONTRACTS ALREADY CONCLUDED BY THE TRANSFEROR COMPANY NO. 1, 2, 3 AND 4**

The transfer and vesting of the said assets and the said liabilities of the Transferor Company No. 1, 2, 3 and 4 and the Transferee Company and the continuance of all the legal proceedings and all the contracts by or against the Transferor Company No. 1, 2, 3 and 4 after the Appointed Date shall not affect any transaction, contract or proceedings already concluded by the Transferor Company No. 1, 2, 3 and 4 in the ordinary course of business on or after the Appointed Date to the end and intent that the Transferee Company accepts on behalf of itself and adopts all acts, deeds and things done and executed lawfully by or on behalf of the Transferor Company No. 1, 2, 3 and 4 as acts, deeds and things done and executed lawfully by or on behalf of the Transferee Company.

12. **NO EFFECT OF TRANSFER OF FINANCIAL BUSINESS UNDERTAKINGS ON THE TRANSACTIONS/ CONTRACTS ALREADY CONCLUDED BY THE TRANSFEROR COMPANY NO. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18**

The transfer and vesting of the said financial assets and the said financial liabilities of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company and the continuance of all the legal proceedings and all the contracts by or against the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 relating to financial business undertaking after the Appointed Date shall not affect any transaction, contract or proceedings already concluded by the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 in the ordinary course of business on or after the Appointed Date to the end and intent that the Transferee Company accepts on behalf of itself and adopts all acts, deeds and things done and executed lawfully by or on behalf of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as

TESTED
MOHAN PAL
DIST. INDORE
M P GOVT

acts, deeds and things done and executed lawfully by or on behalf of the Transferee Company in relation to financial business undertaking.

13. TRANSFEROR COMPANY NO. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 STAFF, WORKMEN AND EMPLOYEES

13.1 Takeover of All the Employees

The Transferee Company will take over all the staff, workmen and other employees in the service of the Transferor Company No. 1, 2, 3 and 4 immediately preceding the Effective Date, and they shall become the staff, workmen and employees of the Transferee Company.

The Transferee Company will take over all the staff, workmen and other employees in the service of financial business undertaking of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 immediately preceding the Effective Date, and they shall become the staff, workmen and employees of the Transferee Company.

13.2 Services of Employees to be Continued Uninterruptedly

The services of the said staff, workmen and other employees shall, for all purpose, including accrued leave benefits, gratuity, provident fund, retirement benefits, retrenchment compensation, superannuation and so on, be regarded as continuous without any break or interruption of service by reason of the transfer of the Undertakings to the Transferee Company.

13.3 Terms and Conditions of Service Shall Be the Same

The terms and conditions of service applicable to such employees on the Effective Date will not in any way be less favorable to them than those applicable to them immediately before the Effective Date. The position, rank and designation of the employees would, however, be decided by the Board of the Transferee Company, which shall also have the right to exercise an option, if warranted, to transfer such

FILED
REGIONAL
INDORE



NATIONAL COMPANY LAW TRIBUNAL INDORE

employees to any unit of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as may be deemed necessary.

14. AMENDMENTS IN THE CONSTITUTION/ BOARD OF THE TRANSFEREE COMPANY

With effect from the Effective Date, without any further act or deed and without following the procedure laid down under the Companies Act, 2013, for the purpose

14.1 Name of the Transferee Company

The name of the Transferee Company shall stand remain same as **ANKIT STEELS PRIVATE LIMITED** as existing name wherever it appears in the Memorandum and Article of Association of the Transferee Company.

14.2 Change in the Memorandum of Association of the Transferee Company

The Memorandum of Association of the Transferee Company shall be altered by way of substitution of share capital clause V as under;

"V. The authorized share capital of the Company shall be Rs. 2,25,00,000/- (Rupees Two Crores Twenty Five Lacs) divided into 22,50,000/- (Twenty Two Lacs Fifty Thousands) equity shares of Rs. 10/- each"

14.3 Change in the Article of Association of the Transferee Company

The Article of Association of the Transferee Company shall be altered by way of substitution of share capital clause V as under;

"V. The authorized share capital of the Company shall be Rs. 2,25,00,000/- (Rupees Two Crores Twenty Five Lacs) divided into 22,50,000/- (Twenty Two Lacs Fifty Thousands) equity shares of Rs. 10/- each"

TESTED
MOHAN PAL
DIST. INDORE

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Above capital clauses shall with power for the company to increase or to reduce the said capital and to issue any part of its capital original or increased with or without any preference, priority or special privilege or subject to any postponement of rights or to any conditions or restrictions and so that unless the conditions of issue shall otherwise shall be suject to the powers hereinafter contained. The rights of the holders of any class of shares for the time being forming part of the capital of the company may be modified, affected, varied, extended or surrendered either with consent in writing of the holders of three-fourths of the issued shares of the class or with the sanction of special resolution of the members of the class as provided by the Articles of Association as originally registered or as altered by special resolution.

15 **INSPECTION OF DIRECTORS REPORT, AUDITED BALANCE SHEET AND P&L ACCOUNT OF THE TRANSFEROR COMPANY NO. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18**

The accounts of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 have been prepared on the basis of book values as on 31st March, 2018 as approved by the Board of Directors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 for the purposes of this Scheme. The Transferee Company has inspected, examined and seen the said accounts, and the Directors Report, Audited Balance sheet and profit and Loss Account of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 for the year ended 31st March, 2018 and also for the previous years and has satisfied itself about the correctness of the Accounts of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 up to the Effective Date.

TESTED
ARJUN PAL
DAIRY DISTT. INDORE
M P GOVT

16 **ACCOUNTING TREATMENT**

16.3 **Accounting Treatment of miscellaneous expenditure**

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Upon the Scheme coming into effect, the respective balance/s appearing under the head "Miscellaneous Expenditure (to the extent not written off or adjusted)" in the books of account of the Transferor Company No. 1, 2, 3 and 4 shall be debited by the Transferee Company to "Miscellaneous Expenditure (to the extent not written off or adjusted) – Transferor Company No. 1, 2, 3 and 4 Account" and they shall thereafter be dealt with in the same manner as they would have been, had they been incurred by the Transferee Company.

Upon the Scheme coming into effect, the respective balance/s appearing under the head "Miscellaneous Expenditure (to the extent not written off or adjusted)" in the books of account pertaining to financial business undertaking of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall be debited by the Transferee Company to "Miscellaneous Expenditure (to the extent not written off or adjusted) – Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 Account" and they shall thereafter be dealt with in the same manner as they would have been, had they been incurred by the Transferee Company.

16.4 **Procedure to Deal with Balances as Between the Transferor Company No. 1, 2, 3 and 4 and the Transferee Company**

To the extent that there are inter-company loans, deposits, balances or debenture holding as between the Transferor Company No. 1, 2, 3 and 4 and the Transferee Company, the obligations in respect thereof shall come to an end and there shall be no liability in that behalf and corresponding effect shall be given in the books of account and records of the Transferee Company for the reduction of any assets or liabilities as the case may be. For the removal of doubt, it is clarified that in view of the above, there would be no accrual of interest or other charges in respect of any such inter- company loans, deposits or balances, with effect from the Appointed Date.

ATTESTED

BHUSAN PAL
NOTARY DISTT. INDORE

NATIONAL COMPANY LAW TRIBUNAL

16.5 **Procedure to Deal with Balances as Between the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company**

To the extent that there are inter-company loans, deposits, balances or debenture holding relating to financial business undertaking as between the Transferor Company No. 1, 2, 3 and 4 and the Transferee Company, the obligations in respect thereof shall come to an end and there shall be no liability in that behalf and corresponding effect shall be given in the books of account and records of the Transferee Company for the reduction of any assets or liabilities as the case may be. For the removal of doubt, it is clarified that in view of the above, there would be no accrual of interest or other charges in respect of any such inter- company loans, deposits or balances, with effect from the Appointed Date.

16.6 **Procedure to Deal with Inter-Company Equity Investment**

If on the effective Date, the Transferee Company holds any shares in the Transferor Company No. 1, 2, 3 and 4, no equity shares in the Transferor Company No. 1, 2, 3 and 4 shall be allotted in lieu of such shareholding. If the Transferor Company No. 1, 2, 3 and 4 to 18 holds any equity shares of the Transferee Company on the Effective Date, then, the face value of the investment of the Transferor Company No. 1, 2, 3 and 4 to 18 in the equity share capital of the Transferee Company will be cancelled against the reduction of share capital of the same amount, being the paid-up equity capital of the Transferee Company.

17 SHARES TO SHAREHOLDERS IN TRANSFEROR COMPANY NO. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18

17.1 **Ratio of allotment**

Upon the transfer of the Undertaking of the Transferor Company No. 1, 2, 3 and 4 to the Transferee Company and the vesting of the

TESTED
MOHAN PAL
ADVOCATE, INDORE
GOVT

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

said assets and the said liabilities and the said amalgamation becoming effective in terms of this Scheme, then in consideration of such transfer and subject to the provisions of this Scheme, the Transferee Company shall, without any further act, application and deed, issue and allot.

To the equity shareholders of the Transferor Company No. 1, 2, 3 and 4, save and except the Transferee Company whose name are shown in the Register of Members, on a date ("Record Date") to be fixed by the Board of the Transferor Company No. 1, 2, 3 and 4, in the SWAP Ratio finalized as per the report of M. Mehta & Co., Chartered Accountant, Indore Dated 06.12.2018.. Equity shares in the Transferee Company of Rs. 10/- each, credited as fully paid -up in the capital of the Transferee Company, for the Equity shares of the held by the shareholders in the Transferor Company No. 1, 2, 3 and 4.

Provided that the amounts unpaid on the Equity Shares in the Transferor Company No. 1, 2, 3 and 4 (together with interest accrued and due thereon) shall be treated as calls-in-arrears in respect of such new Equity Shares and continue to be outstanding obligations from such Equity Shareholders in the Transferee Company.

Upon the transfer of the Financial Business Undertaking of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 to the Transferee Company and the vesting of the said financial assets and the said financial liabilities and the said demerger becoming effective in terms of this Scheme, then in consideration of such transfer and subject to the provisions of this Scheme, the Transferee Company shall, without any further act, application and deed, issue and allot.

To the equity shareholders of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18, save and except the Transferee Company whose name are shown in the Register of

ATTESTED
MOHAN PAL
NOTARY DISTT. INDORE
GOVT.

Members, on a date ("Record Date") to be fixed by the Board of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18. Such allotment of equity shares to the shareholders of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 should be equivalent to the value of financial assets demerged and such equity share should be allotted to each shareholder of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 in the ratio of their shareholding in concerned company. Equity shares in the Transferee Company of Rs. 10/- each, credited as fully paid-up in the capital of the Transferee Company, for the Equity shares of the transferor company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 held by the shareholders in the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

17.2 **Procedure to Deal with Fractional Entitlement of Members of Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18**

No Fractional Certificates shall be issued by the Transferee Company in respect of the fractional entitlements, if any, to which the shareholders of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 may be entitled on issue and allotment of the shares of the Transferee Company as aforesaid. Thus, for the purpose of the allotment of shares as referred in clause 17.1 above, fractional entitlements shall be ignored. It is clarified that holders of less than One (1) equity shares in the Transferor Company No. 1, 2, 3 and 4 shall not be entitled to issue or allotment of any share in the Transferee Company but shall receive the sale proceeds in respect of their fractional entitlements as mentioned above.

17.3 **Application to Obtain Approval from Regulatory Authorities**

The Transferee Company shall, if and to the extent required, apply for and obtain the consent of the concerned authorities, for the issue and allotment by the Transferee Company of the Equity Shares in the share capital of the Transferee Company in the manner as aforesaid to

TESTED
MOHAN PAL
DISTT. INDORE
M P GOVT.

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

the respective members of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

17.4 **Surrender of Share Certificates by the Members of the Transferor Company No. 1, 2, 3 and 4**

Notwithstanding anything to the contrary, upon the new shares in the Transferee Company being issued and allotted by it to the shareholders of the Transferor Company No. 1, 2, 3 and 4, the share certificates in relation to the share held by them in the Transferor Company No. 1, 2, 3 and 4, shall be deemed to have been automatically cancelled and be of no effect, on and from such date, and the Transferee Company may instead of requiring the surrender of the share certificates, as above, directly issue and dispatch the new share certificates of the Transferee Company.

17.5 **Issuance of New Share Certificates in the Transferee Company**

The shareholder of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall be issued new share certificates in the Transferee Company (Ankit Steels Pvt Ltd).

17.6 **Acceptance of Shares by the Shareholders of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18**

All the shareholders of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall accept the share(s) to be allotted as aforesaid by virtue of their shareholdings in the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

17.7 **Increase/ Reduction of Authorized Share Capital of the Transferee Company**

If required, The Transferee Company shall before allotment of the Equity Shares in terms of the Scheme Without following the procedure laid down under the provisions of the Act-

MOHAN PAL
NOTARY DISTT. INDORE
M P GOVT

NATIONAL COMPANY LAW TRIBUNAL INDORE

1227

(a) Increase its authorized share capital by the creation of at least such number of equity shares of Rs. 10/- each as may be necessary to satisfy its obligation under the provision of this Scheme.

(b) Alter its memorandum of association and Article of association to give effect to the aforesaid increase of authorized capital.

17.8 Approval of the scheme by the shareholders of the Transferee Company shall be deemed to be the due compliance of the applicable provisions of the Act for the issue and allotment of the equity shares by the Transferee Company to the shareholders of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 as provided in the scheme.

17.9 Ranking of new shares

The Equity shares so allotted by the Transferee company to the shareholders of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall in the respects rank *pari-passu* with the existing shares of the Transferee Company including that such Equity shares shall be entitled to the dividend which may be declared/distributed by the Transferee Company any time after the such allotment, irrespective of the date on which such Equity shares are allotted.

17.10 Treatment of Preferential Share Holding

As on date, the entire preference share capital of Transferee Company, i.e. 17500 Redeemable Non-Cumulative Preference Shares of Rs. 100/- each, is held by Network Capital Markets Ltd. The Network Capital Markets Ltd. Preference Shares are redeemable in terms of the issue.

Through this scheme the Transferee Company will be able to discharge its redemption liability to the extent of the Preference Shares, which would be beneficial for its shareholders. The Scheme is

ATTESTED
MOHAN PAL
DISTT. INDORE



1228

(1600)

being filed in its present form as, Reduction of Preference Share Capital of Transferee Company, is conditional upon the merger becoming effective and Network Capital Markets Ltd. receiving 37634.41 equity shares of the Transferee Company. A single composite scheme involving both merger and Reduction of the Preference Share Capital of Transferee Company will ensure that there is no time lag and following the merger, the Reduction of the Preference Share Capital of Transferee Company can be efficiently and immediately completed.

Similarly, the entire preference share capital of P J Beverages Private Ltd, Transferor Company i.e. 2600 Redeemable Non-Cumulative Preference Shares of Rs. 100/- each, is held by Network Capital Markets Ltd. The Network Capital Markets Ltd. Preference Shares are redeemable in terms of the issue.

Through this scheme the Transferor Company No. 2 will be able to discharge its redemption liability to the extent of the Preference Shares, which would be beneficial for its shareholdes. The Scheme is being filed in its present form as, Reduction of Preference Share Capital of Transferor Company No. 2, is conditional upon the merger becoming effective and Network Capital Markets Ltd. receiving 5200 equity shares of the Transferor Company No. 2. A single composite scheme involving both merger and Reduction of the Preference Share Capital of Transferor Company No. 2 will ensure that there is no time lag and following the merger, the Reduction of the Preference Share Capital of Transferor Company No. 2 can be efficiently and immediately completed. Such equity shares to Network Capital Markets Ltd. will be treated in accordance with the procedure provided in this scheme so as to allot the equity shares of Transferee Company to Network Capital Markets Ltd.

STEL

ROHAN PAL
DIARY DISTT. INDORE
M P GOVT

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

1229

(1601)

18 **CONSENT OF ALL TRANSFEROR COMPANY NO. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 AND TRANSFEREE COMPANY TO ANY MODIFICATIONS TO THE SCHEME**

The Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may in their full and absolute discretion, assent from time to time, on behalf of all persons concerned, to any modifications or amendments to the Scheme or agree to any terms and/or conditions which the Hon'ble NCLT and/or any other authorities under law may deem fit to approve of or direct or impose or which may otherwise be considered necessary or desirable or appropriate by them in the best interests of the members for settling any question or doubt or difficulty that may arise, whether by reason of any order of the Hon'ble NCLT or of any directive or orders of any other authorities or otherwise howsoever, arising out of, under or by virtue of this scheme and for the implementation and/or carrying out of the Scheme or in any matter connected therewith (including any question or difficulty arising in connection with any deceased or insolvent shareholder of the respective companies) and do all acts, deeds and things and take all such steps as may be necessary, desirable or expedient for putting the Scheme into effect on/upon or after dissolution of the Transferor Company No. 1, 2, 3 and 4. The aforesaid powers of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may be exercised by their respective Boards or any director authorized on that behalf by the concerned Board.

In the event that any conditions imposed by the Court are found unacceptable for any reason whatsoever by Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or the Transferee Company, then the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and /or the Transferee Company shall be entitled to withdraw from the Scheme in which event no right and liabilities whatsoever shall accrue to or be incurred inter se to or by the parties or any of them.

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

+230

(1602)

19 SCHEME CONDITIONAL ON APPROVALS/SANCTIONS

The Scheme is conditional upon and subject to the following approvals/permissions and the amalgamation and the demerger shall be deemed to be complete on the date on which the last of such approvals/ permissions shall have been obtained.

19.1 **Approval of all the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company**

The approval and agreement of the Scheme by the requisite majorities of such classes of persons of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and of the Transferee Company, as may be directed by the NCLT on the applications made for directions under section 230 of the said Act for calling meetings and necessary resolutions being passed under the said Act.

19.2 **Approval of Creditors**

The approvals of public financial institutions, banks and creditors, wherever necessary, under any contract entered into with them by the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and/or the transferee company.

19.3 **Approval of the Government or any other authority**

The sanction or approval under any law or of the Government or any other agency, statutory or regulatory department or authorities concerned in respect of any of the matters in respect of which such sanction or approval is required.

19.4 **Requisite resolutions to be passed by the shareholders of all the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and Transferee Company**

19.5 **Approval for alteration of Memorandum of Association**

The approval for the alteration of the Memorandum of Association of the Company as required for the purpose of carrying on the business

ROHAN PAL
ADDL. COLLECTOR DISTT. INDORE
M.P. GOVT.

NATIONAL COMPANY LAW TRIBUNAL BENCH INDORE

activities of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

20 SCHEME SUBJECT TO MODIFICATIONS OF HON'BLE NCLT

The Scheme shall be subject to such modifications as the Hon'ble NCLT while sanctioning such amalgamation of the Transferor Company No. 1, 2, 3 and 4 with the Transferee Company and demerger of the 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 with the Transferee Company may direct and which the Board of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may consent and to.

21 DISSOLUTION OF THE TRANSFEROR COMPANY NO. 1, 2, 3 AND 4

Upon the Scheme being sanctioned and an Order being made by the NCLT under section 230 of the said Act, the Transferor Company No. 1, 2, 3 and 4 shall stand dissolved without winding up on the Effective Date.

22 DISSOLUTION OF THE FINANCIAL BUSINESS UNDERTAKING OF TRANSFEROR COMPANY NO. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 AND 18

Upon the Scheme being sanctioned and an Order being made by the NCLT under section 230 of the said Act, the financial business undertaking Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall stand dissolved on the Effective Date.

23 EFFECT OF NON-RECEIPT OF APPROVALS/ SANCTIONS

In the event of any of the said sanctions and approvals not being obtained and/or the Scheme not being sanctioned by the Hon,ble NCLT and/or the order or orders not being passed as aforesaid before 31st March, 2019 or within such further period or periods as may be agreed upon between the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17

ATTESTED
BHOBHAN PAL
STAFF OFFICER
P. GOVT.

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

(1604)

and 18 by its Directors and the Transferee Company by its Directors (and which the Board of Directors of both companies. are hereby empowered and authorised to agree to and extend from time to time without any limitations), the Scheme of Amalgamation and Demerger shall become null and void and shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as in specifically provided in the Scheme or may otherwise arise in law.

The transferee company shall bear the costs, charges, stamp duty and expenses in connection with the Scheme of Amalgamation and Demerger.

24 EFFECT OF NON-FULFILMENT OF ANY OBLIGATION

In the event of non-fulfillment of any or all obligations under the Scheme, by either the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 or the Transferee Company, the non-performance of which will put the other Company under any obligation, then such defaulting company will indemnify all costs/interests, etc. to the other company, subject to a specific provision if any to the contrary under the Scheme.

25 OPERATIVE DATE OF THE SCHEME

The scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Hon'ble NCLT or made as per the scheme shall be effective from the appointed date but shall become operative from the effective date.

26 REORGANISATION OF SHARE CAPITAL OF THE TRANSFEROR COMPANY NO. 1, 2, 3 AND 4 THE TRANSFEREE COMPANY

26.1 Authorized, Issued & Paid up Equity Share Capital of the Transferee Company

Authorized Share Capital:

Page 146

NATIONAL COMPANY LAW TRIBUNAL INDORE

26.1.1 Under the scheme, out of the authorized share capital of the Transferor Company No. 1 of Rs. 10,00,000/- (Rupees Ten Lakhs Only) divided into 10,000 (Ten Thousand) equity shares of Rs. 100/- each, authorized share capital of the Transferor Company No. 2 of Rs. Rs. 15,00,000/- (Rupees Fifteen Lakhs) divided into 10,000 (Ten Thousand) equity shares of Rs. 100/- each and Rs. 5,00,000/- (Rupees Five Lakhs) divided into 5000 Non Cumulative Preference shares of Rs.100/- each, authorized share capital of the Transferor Company No. 3 of Rs. 40,00,000/- (Rupees Forty Lakhs Only) divided into 40,000 (Forty Thousand) equity shares of Rs. 100/- each and authorized share capital of the Transferor Company No. 4 of Rs. 10,00,000/- (Rupees Ten Lakhs Only) divided into 2,00,000 (Two Lakhs) equity shares of Rs. 5/- each **[Aggregate Authorised Share Capital of the Transferor Company No. 1,2,3 and 4 is Rs 75,00,000/- (Seventy Five Lakhs)]** shall stand transferred and merged with the authorized share capital of the transferee company, pursuant to the provisions of section 232(3) of the Act of 2013 and under sections 13 and 61 of the Act of 2013, to give effect to which the transferee company shall file all necessary forms and documents with the Ministry of Corporate Affairs but shall not be required to make payment of fee to the Ministry of Corporate Affairs and also payment of stamp duty to the State of Madhya Pradesh as the Transferor Company No. 1, 2, 3 and 4 shall stand dissolved without winding up and the fee already paid by the Transferor Company No. 1, 2, 3 and 4 on its authorized share capital shall be set-off against the fee payable by the transferee company.

26.1.2 Upon coming into effect of this scheme, the Authorized Share Capital of the transferee company shall, without any further act, deed or compliance of any section under the Companies

ATTESTED
MOHAN PAL
DIST: INDORE

NATIONAL COMPANY LAW TRIBUNAL INDORE

1234

(1606)

Act, 2013 or the rules made there-under as may be applicable in this regard be increased from Rs.1;50,00,000/- (Rupees One Crores Fifty lacs) divided into 12,50,000 (Twelve Lakh Fifty Thousand) equity shares of Rs.10/- each and 25,000 (Twenty Five Thousand) non-cumulative redeemable preferential shares of Rs. 100/- each to Rs. 2,25,00,000/- (Rupees Two Crores Twenty Five Lacs) divided into 22,50,000/- (Twenty Two lacs Fifty Thousands) equity shares of Rs. 10/- each and consequently Clause V of the Memorandum of Association of the transferee company (relating to authorized share capital) shall without any further act, instrument or deed be stand altered, modified and amended pursuant to Sections 61 and 14 and other applicable provisions of the Act or under the Companies Act, 2013, as the case may be, in the manner set out below and be replaced by the following clause:

"V. The authorized share capital of the Company shall be Rs. 2,25,00,000/- (Rupees Two Crores Twenty Five Lacs) divided into 22,50,000/- (Twenty Two Lacs Fifty Thousands) equity shares of Rs. 10/- each"

Paid up Share Capital:

Upon the scheme being effective and in consideration of the transfer of and vesting of the undertaking of the Transferor Company No. 1, 2, 3 and 4 into the transferee Company in terms of the scheme, all the equity shareholders of the Transferor Company No. 1, 2, 3 and 4 shall become shareholders of the transferee company and shall be entitled to equity shares of Rs.10/- each of the transferee company against the equity shares held by him in the Transferor Company No. 1, 2, 3 and 4 as per SWAP Ratio finalized as per the report of

NATIONAL COMPANY LAW TRIBUNAL INDORE

M. Mehta & Co., Chartered Accountant, Indore Dated 06.12.2018.

26.1.3 Upon the scheme being effective the issued, subscribed and paid up capital of the transferee company shall automatically stand increased from Rs. 1,25,40,000 (One Crore Twenty Five lacs Forty Thousand) divided into 10,79,000 (Ten Lakh Seventy Nine Thousand) equity shares of Rs.10/- each and 17,500 (Seventeen Thousand Five Hundred) non-cumulative redeemable preferential shares of Rs. 100/- each to Rs. 2,15,69,120/- (Rupees Two Crore Fifteen Lakh Sixty None Thousand One Hundred Twenty) divided into 21,56,912 (Twenty One Lakh Fifty Six Thousand Nine Hundred Twelve) equity shares of Rs.10/- each and the transferee company shall file the required forms and documents with the Ministry of Corporate Affairs intimating increase in its issued, subscribed and paid up share capital on payment of the filing fees to the Ministry of Corporate Affairs as may be applicable to be paid in accordance with law for the time being in force.

26.1.4 Upon the scheme being effective the share capital structure of the transferee company shall be as under:

Particulars	Amount in Rs.
Authorized:	
2,25,000 equity shares of Rs.10/- each	2,25,00,000/-
Total	2,25,00,000/-
Issued, Subscribed and Paid-up:	
21,56,912 equity shares of Rs.10/- each	2,15,69,120/-
Total	2,15,69,120/-

ATTESTED

MOHAN PAL

26.1.5 The scheme only envisage issue and allotment of the equity shares in the manner provided in this scheme to the existing equity shareholder of the Transferor Company No. 1, 2, 3 and

NATIONAL COMPANY LAW TRIBUNAL INDORE

4 and the members of the Transferor Company No. 1, 2, 3 and 4 shall be entitled for equity shares of the transferee company in the same proportion in which they were holding equity shares of the Transferor Company No. 1, 2, 3 and 4 and similarly envisage issue and allotment of the equity shares in the manner provided in this scheme to the existing equity shareholder of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the members of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall be entitled for equity shares of the transferee company in the same proportion in which they were holding equity shares of the Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

26.1.6 Upon the scheme being effective, the shareholders of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 shall be issued fresh share certificates of the transferee company in accordance in the manner provided in this scheme and in accordance with the provisions of the Companies Act, 2013 and Rules made there under.

26.1.7 The equity shares of the transferee company issued and allotted in terms hereof shall be *pari-passu* with the existing shares and shall be subject to the Memorandum and Articles of Association of the transferee company.

26.1.8 On receiving a certified copy of the order of the Hon'ble NCLT approving the present scheme, the concerned offices of the Registrar of Companies shall, with effect from the appointed date, record the increase in the authorised, issued, subscribed and paid-up share capital of the Transferee Company in terms of provisions of the Companies Act.

26.1.9 The present scheme of arrangement has been drawn in compliance of the provisions of Section 2(19AA) of the Income Tax Act, 1961 as well as the provisions of Section 230

ESTED
MAN PAL
INDORE

NATIONAL COMPANY LAW TRIBUNAL
INDORE

of the Companies Act, 2013 pertaining to division among and transfer to two companies each of which is an existing company and should always be read in compliance of the said provisions.

27 APPLICATIONS TO NCLT

The Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company shall, with all reasonable dispatch, make a joint application and a joint petition to the jurisdictional Hon'ble NCLT pursuant to Sections 230-232 and other applicable provisions of the Act or any Rules or Regulations made there under as may be applicable to the companies, from time to time, for seeking sanction of the present scheme and apply for and obtain such other approvals, if any, required under the law.

28 APPROVALS AND MODIFICATIONS

28.1 The Board of Directors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may assent from time to time, on behalf of all persons concerned including the shareholders, to any modification(s) or amendment(s) or addition(s) to the present scheme, or to any conditions or limitations which either the Board of Directors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may deem fit or which the Hon'ble NCLT and/or any competent authority, if any, under the law may deem fit, to approve of or impose and which the Board of Directors of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may in their discretion, deem fit, and to resolve all doubts or difficulties that may arise in carrying out and implementing this scheme and to do all acts, instruments, deeds, matters and things necessary or to review the position relating to the satisfaction of the conditions of this scheme

TESTED
GOPAL PAL
DIST. INDORE

NATIONAL COMPANY LAW TRIBUNAL

and if necessary, to waive any of those (to the extent permissible under law) for bringing the scheme into effect. In the event of any of the conditions that may be imposed by the Hon'ble NCLT or other authorities, which the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may find unacceptable for any reason, whatsoever, then the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company are at liberty to withdraw the scheme. The aforesaid powers of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may be exercised by their respective Board of Directors, or a committee of the concerned Board of Directors, or any director or employee authorised in that behalf by the concerned Board of Directors (hereinafter referred to as the "Delegates").

28.2 For the purpose of giving effect to this scheme or to any modifications or amendments thereof, or additions thereto, the Delegate(s) of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company may give and are hereby authorised to determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties in the same manner as if the same were specifically incorporated in this scheme.

29 SCHEME CONDITIONAL UPON APPROVALS/ SANCTIONS

The present scheme is conditional upon and subject to:

29.1 The scheme being agreed to by the requisite majority of the members of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company as required under the Act and the requisite orders of the NCLT.

29.2 Such other sanctions and approvals including sanctions of any governmental or regulatory authority of the scheme being obtained.

ATTESTED
BHUWAN PAL
ADVOCATE, INDORE
M.P. GOVT.

COMPANY LAW TRIBUNAL

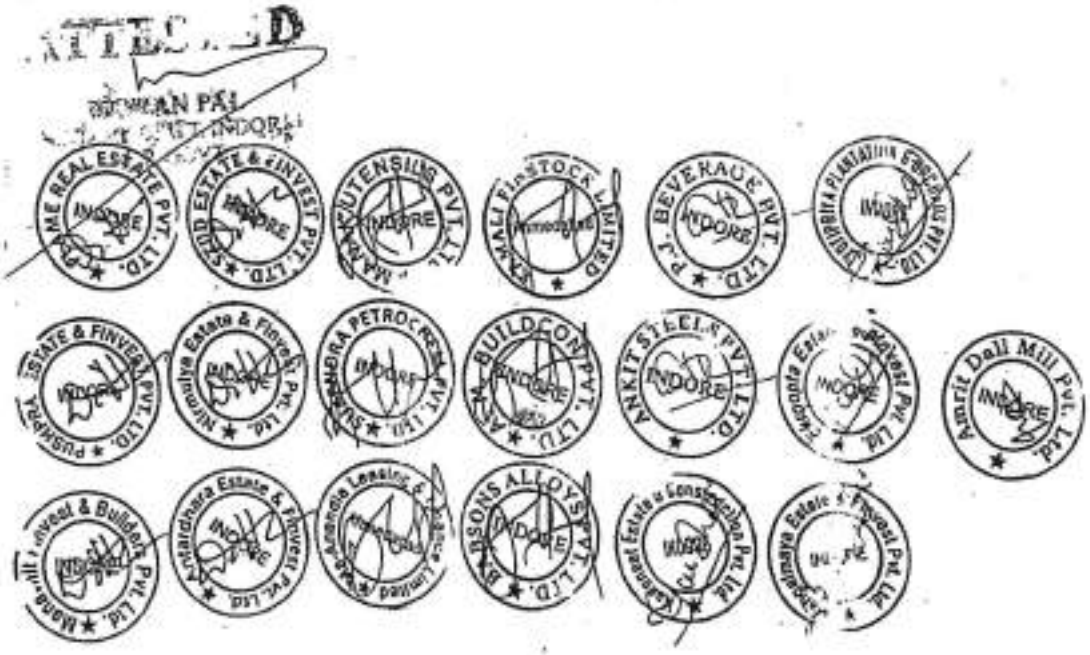
1239

1611

29.3 The certified copies of the orders passed by Hon'ble NCLT, sanctioning the scheme, being filed with the Registrar of Companies, under the Ministry of Corporate Affairs, New Delhi.

30 EXPENSES CONNECTED WITH THE SCHEME

All other expenses, including legal expenses, if any, (save where expressly provided otherwise) of the Transferor Company No. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 and the Transferee Company respectively in relation to or in connection with this Scheme including the negotiations leading up to this Scheme and for carrying out and completing the terms and provisions of this Scheme and/or incidental to the completion of amalgamation of Transferor Company No. 1, 2, 3 and 4 and Demerger of Transferor Company No. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18 in pursuance of this Scheme shall be borne and paid by the Transferee Company alone.



Form 1-52

NATIONAL COMPANY LAW TRIBUNAL INDORE

Certified to be True Copy of the Original
P.K. Mishra
8-9-2022
Deputy Registrar
NCLT, Indore Bench
Indore

Date of Pronouncement of Order : 8/9/22
Date on which Application for Certified Copy was Made : 8/9/22
Date on which Certified Copy was Ready : 8/9/22
Date on which Certified Copy Delivered : 8/9/22

(MP) CP(CAA) 110f2020 in CA(CAA) 930f2019

Annexure – B

25. SCHEDULE OF PROPERTIES / ASSETS OF THE TRANSFEROR/DEMERGED COMPANIES AS ON DATE ARE AS UNDER:

S. NO.	PARTICULARS OF ASSETS	AMOUNT IN RUPEES
1	MANAK UTENSILS PVT.LTD.	
	INVESTMENTS	
	830 Equity Shares of Bhakar Vyapaar Pvt.Ltd. @ 10/- each	8300
	830 Equity Shares of Loknath Tieup Pvt.Ltd. @ 10/- each	8300
	1050000 Preferance Shares of Mittal Utensils Pvt.Ltd.@ 10/- each	10500000
		10516600
	Loan given to Flex Vanijya Pvt.Ltd.	1034881
	Cash in Hand	17449
	Bank Balances	
	Axis Bank Ltd., Type of Current Account No. 913020032005287 Yeshwant Niwas Road, Indore (M.P.)	56196
	State Bank of India, Type of Current Account No. 53013517409 Yeshwant Niwas Road, Indore (M.P.)	37454
		93649
	Advance Income Tax A.Y. 2020-21	30000
	TOTAL	**11692579**
2	P.J. BEVERAGES PVT.LTD.	
	INVESTMENTS	
	830 Equity Shares of Bhakar Vyapaar Pvt.Ltd. @ 10/- each	8300
	830 Equity Shares of Loknath Tieup Pvt.Ltd. @ 10/- each	8300
		16600
	Cash in Hand	26327
	Bank Balances	

NATIONAL COMPANY LAW TRIBUNAL INDORE

	Axis Bank Ltd., Type of Current Account No. 912020038766314 Yeshwant Niwas Road, Indore (M.P.)	30497
	Deferred Tax	35955
	TOTAL	**109379**
3	**BABSONS ALLOYS PVT.LTD.**	
	INVESTMENTS	
	10 Equity Shares of Mittal Coin Pvt.Ltd. @ 10/- each	100
	160000 Preferance Shares of Mittal Coin Pvt.Ltd. @ 10/- each	1600000
	11 Equity Shares of P.J. Beverages Pvt.Ltd. @ 100/- each	1100
		1601200
	Loan given to Flex Vanijya Pvt.Ltd.	7932856
	Advance Income Tax A.Y. 2020-21	130000
	TDS Receiable A.Y. 2020-21	89760
	Cash in Hand	24438
	Bank Balances	
	Axis Bank Ltd., Type of Current Account No. 043010200032735 Yeshwant Niwas Road, Indore (M.P.)	14764
	MAT Credit	421299
	TDS Receiable A.Y. 2021-22	1389
	TOTAL	**10215706**
4	**AMRIT DALL MILL PVT.LTD.**	
	INVESTMENTS	
	900 Equity Shares of Dinkar Vayappr Pvt.Ltd. @ 10/- each	9000
	1000 Equity Shares of Navdurga Commerce Pvt.Ltd. @ 10/- each	10000
		19000
	Loan given to Amadues Developers LLP	3273891
	Advance Income Tax A.Y. 2020-21	25000

NATIONAL COMPANY LAW TRIBUNAL INDORE

	TDS Receiable A.Y. 2020-21	30331
	Deferred Tax	13457
	Advance Agt Agriculture Land at Piliplya Kumar	200000
	Cash in Hand	37618
	Bank Balances	
	Axis Bank Ltd., Type of Current Account No. 043010200042653 Yeshwant Niwas Road, Indore (M.P.)	52122
	TOTAL	**3651419**
5	**FLAME REAL ESTATE PVT.LTD.**	
	INVESTMENTS	
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	7000 Equity Shares of Feel Home Real Estate Pvt.Ltd. @ 10/- per Share with 90/-premium	700000
	8000 Equity Shares of Jyotipriya Plantation & Orchads Pvt.Ltd. @ 10/- with 40/- premium	400000
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	100000 Preferance Shares of Mittal Coin Pvt.Ltd.@ 10/- per Share	1000000
	TOTAL	**2116000**
6	**ANTARDHARA ESTATE & FINVEST PVT.LTD.**	
	INVESTMENTS	
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	8000 Equity Shares of Jyotipriya Plantation & Orchads Pvt.Ltd. @ 10/- with 40/- premium	400000
	270000 Preferance Share of Mittal Appliances Ltd. @ Rs. 10/- each	2700000
	TOTAL	**3116000**

NATIONAL COMPANY LAW TRIBUNAL INDORE

VMVS LEGAL INDORE

7	NIRMULYA ESTATE & FINVEST PVT.LTD.	
	INVESTMENTS	
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	8000 Equity Shares of Feel Home Real Estate Pvt.Ltd.@ 10/- per shares with 90/- Premium	800000
	TOTAL	**816000**
8	STUD ESTATE AND FINVEST PVT. LTD.	
	INVESTMENTS	
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	210000 Preferance Shares of A.M.Buildcon Pvt.Ltd. @ 10/- each	2100000
	TOTAL	**2116000**
9	MANAVHIT FINVEST & BUILDERS PVT.LTD.	
	INVESTMENTS	
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	210000 Preferance Shares of Mittal Utensils Pvt.Ltd. @ 10/- each	2100000
	TOTAL	**2116000**
10	PUSHPRAJ ESTATE AND FINVEST PVT.LTD.	
	INVESTMENTS	
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000

NATIONAL COMPANY LAW TRIBUNAL INDORE

JMV LEGAL INDORE

	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	210000 Preferance Shares of A.M.Buildcon Pvt.Ltd. @ 10/- each	2100000
	TOTAL	**2116000**
11	**MNONEET ESTATE & CONSTRUCTION PVT.LTD.**	
	INVESTMENTS	
	290000 Preferance Shares of Manavhit Developers Pvt. Ltd. @ 10/- each	2900000
	TOTAL	**2900000**
12	**MANGALMAYA ESTATE & FINVEST PVT.LTD.**	
	INVESTMENTS	
	23000 Equity Shares of Akashdeep Finbuild Pvt.Ltd. of Rs. 10/- each with premium of 90/-	2300000
	10 Eqity Shares of Mittal Coin Pvt. Ltd. of Rs. 10/- each	100
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	16581.638 units of UTI Dividend Yield Fund Dividend payout reinvest of Rs. 10/- each	219435
	400 Equity Shares of Uco Bank @ 10/- each	4800
	300000 Preferance Shares of Mittal Utensils Pvt.Ltd. @ 10/- each	3000000
	70000 Preferance Shares of Mittal Coin Pvt.Ltd. @ 10/- each full paid-up	700000
	230000 Preferance Shares of Mittal Appliances Ltd. @ 10/- each full paid-up	2300000
	TOTAL	**8540335**
13	**EKROOPTA ESTATE AND FINVEST PVT.LTD.**	
	INVESTMENTS	

	5000 Equity Shares of Feel Home Real Estate Pvt.Ltd. @ 10/- each with premium 90/-	500000
	160000 Preferance Shares of Manavhit Developers Pvt. Ltd. @ 10/- each	1600000
	TOTAL	**2100000**
14	**JYOTIPRIYA PLANTATION & ORCHADS PVT.LTD.**	
	INVESTMENTS	
	350 Equity Shares of Bhaskar Vyappar Pvt.Ltd. @ 10/- each	3500
	700 Equity Shares of Dinkar Vyappar Pvt.Ltd. @ 10/- each	7000
	350 Equity Shares of Loknath Tie-up Pvt.Ltd. @ 10/- each	3500
	900 Equity Share of Navdurga Commerce Pvt.Ltd. @ 10/- each	9000
	10 Eqity Shares of Mittal Coin Pvt. Ltd. of Rs. 10/- each	100
	190000 Preferance Shares of Mittal Coin Pvt.Ltd. @ 10/- each full paid-up	1900000
	TOTAL	**1923100**
15	**A.M. BUILDCON PVT.LTD.**	
	INVESTMENTS	
	850 Equity Shares of Bhaskar Vyappar Pvt.Ltd. @ 10/- each	8500
	850 Equity Shares of Loknath Tie-up Pvt.Ltd. @ 10/- each	8500
	TOTAL	**17000**
16	**KAMALI FINSTOCK LTD.**	
	INVESTMENTS	
	850 Equity Shares of Bhaskar Vyappar Pvt.Ltd. @ 10/- each	8500

NATIONAL COMPANY LAW TRIBUNAL INDORE

JHVD LEGAL

	850 Equity Shares of Loknath Tie-up Pvt.Ltd. @ 10/- each	8500
	160000 Preferance Shares of Manavhit Developers Pvt. Ltd. @ 10/- each	1600000
	TOTAL	**1617000**
17	**MA-ANANDIYA LEASING AND FINANCE LTD.**	
	850 Equity Shares of Bhaskar Vyappar Pvt.Ltd. @ 10/- each	8500
	850 Equity Shares of Loknath Tie-up Pvt.Ltd. @ 10/- each	8500
	150000 Preferance Shares of Manavhit Developers Pvt. Ltd. @ 10/- each	1500000
	TOTAL	**1517000**
18	**SURENDRA PETROCHEM PVT. LTD.**	
	INVESTMENTS	
	850 Equity Shares of Bhaskar Vyappar Pvt.Ltd. @ 10/- each	8500
	850 Equity Shares of Loknath Tie-up Pvt.Ltd. @ 10/- each	8500
	TOTAL	**17000**

PRAYER:

It is humbly prayed that this Hon'ble NCLT may graciously be pleased to allow this this summary and take the same on record in respect of present petition for approval of the scheme of arrangement.;

Date: 23.03.2021

Counsel for the Applicant Companies

JMVD Legal

Indore

NATIONAL COMPANY LAW TRIBUNAL * INDORE *

Certified to be True Copy of the Original
P.K.Mishra
8/9/2022
Deputy Registrar
NCLT, Indore Bench
Indore

JMVD LEGAL

Date of Pronouncement of Order : 8/9/22
Date on which Application for Certified Copy was Made : 8/9/22
Date on which Certified Copy was Ready : 8/9/22
Date on which Certified Copy Delivered : 8/9/22